



# THE ELEMENTS

# COMMERCIAL POLICY



AmTrust North America  
An AmTrust Financial Company

877-528-7878

6318 ORCHARD AVENUE

**EAST, <sup>55VZ</sup> <sup>55VZ</sup> FLOOR**

ONEONTA, OH 13820

**Wesco** Granite Row

VANTAGE IS PROVIDED BY  
DESIGNATED ON THE

(A Northvale Automotive )

THIS POLICY CONSISTS OF:

- DECLARATIONS
- COMMON POLICY CONDITIONS
- ONE OR MORE COVERAGE PARTS, and
- APPLICABLE FORMS AND ENDORSEMENTS

## Read Your Policy Carefully

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This policy is a legal contract between you and us. The information on this page is not the insurance contract and only the actual policy provisions will control. The policy sets forth in detail the rights and obligations of both you and us. **It is therefore important that you read your policy carefully.**

We will provide the insurance described in this policy in return for the premium and compliance with all applicable provisions of the policy.

This policy is signed by the President and Secretary of the Granite Row  
shall not be valid unless countersigned on the Declaration

and, if required by State law, this policy  
d representative.



President



Secretary

## U.S. TREASURY DEPARTMENT'S OFFICE OF FOREIGN ASSETS CONTROL ("OFAC") ADVISORY NOTICE TO POLICYHOLDERS

No coverage is provided by this Policyholder Notice nor can it be construed to replace any provisions of your policy. You should read your policy and review your Declarations page for complete information on the coverages you are provided.

This Notice provides information concerning possible impact on your insurance coverage due to directives issued by OFAC. **Please read this Notice carefully.**

The Office of Foreign Assets Control (OFAC) administers and enforces sanctions policy, based on Presidential declarations of "national emergency". OFAC has identified and listed numerous:

- Foreign agents;
- Front organizations;
- Terrorists;
- Terrorist organizations; and
- Narcotics traffickers;

as "Specially Designated Nationals and Blocked Persons". This list can be located on the United States Treasury's web site – <http://www.treas.gov/ofac>.

In accordance with OFAC regulations, if it is determined that you or any other insured, or any person or entity claiming the benefits of this insurance has violated U.S. sanctions law or is a Specially Designated National and Blocked Person, as identified by OFAC, this insurance will be considered a blocked or frozen contract and all provisions of this insurance are immediately subject to OFAC. When an insurance policy is considered to be such a blocked or frozen contract, no payments nor premium refunds may be made without authorization from OFAC. Other limitations on the premiums and payments also apply.

# DIRECTORS & OFFICERS HOTLINE

## 855.962.7270



# 1

## ***WHAT IS THE HOTLINE?***

AmTrust has teamed with Wilson Elser, one of the nation's largest defense litigation law firms, to provide you with a valuable risk management service – a complementary directors & officers (D&O) practices hotline. Call the hotline to talk to an experienced D&O attorney about breach of fiduciary duty by an officer or director, such as alleged violation of company bylaws or allegations of improper investment of funds; claims by investors of negligent investing; minority shareholder valuation claims; shareholder disputes or other D&O law issues.

# 2

## ***WHAT IS THE COST OF THE HOTLINE?***

The hotline service is **FREE** and available while your AmTrust D&O policy is in effect.

# 3

## ***HOW DO I ACCESS THE HOTLINE?***

It's simple and there is no need to preregister. Just call the hotline at **855.962.7270** and identify yourself as an insured under AmTrust's D&O program. You will be placed in contact with one of Wilson Elser's experienced attorneys to assist you with your D&O question or concern.

# 4

## ***WHO IS WILSON ELSE?***

Wilson Elser is one of the nation's largest defense litigation law firms. With hundreds of attorneys in 34 offices across the country, Wilson Elser is uniquely positioned to assist your business in navigating the maze of complex D&O issues and regulations. Wilson Elser attorneys are able to draw on hundreds of years of cumulative attorney experience and a wealth of internal resources to provide strategic guidance in a timely fashion and thus help you reduce your exposure to D&O-related claims and liability.

5

***WILL MY HOTLINE CONTACT BE KEPT CONFIDENTIAL?***

**Yes.** Your communication with the attorneys will be protected by the attorney-client privilege. Neither the details of the communication nor the advice given will be disclosed to others, including your insurance carrier or broker. After receiving assistance via the hotline, there will be no continuing attorney-client relationship with the firm until you call again or unless you choose to enter into a formal engagement agreement with the firm for other services.

6

***CAN I CALL THE HOTLINE TO REPORT A CLAIM?***

**No.** Claims must be reported to your insurance carrier per the terms of your insurance policy. Speaking with a Wilson Elser attorney on the hotline will be confidential and is not the same as reporting a claim.

7

***IS THERE A LIMIT TO THE NUMBER OF CALLS I CAN MAKE?***

**No.** You may call whenever you need assistance with a D&O law issue or concern.

8

***IS THERE ANY LIMIT TO THE ADVICE I CAN RECEIVE VIA THE HOTLINE?***

The services and scope of advice available via the hotline are broad, but not without limitation. The hotline advice is intended to be delivered in individual calls lasting no more than 15 minutes. The hotline does not include advice in connection with active litigation, reviewing or drafting documents, ongoing advice matters or advice requiring more than a *de minimis* amount of legal research.

DIRECTORS &amp; OFFICERS HOTLINE

855.962.7270

THIS ENDORSEMENT IS ATTACHED TO AND MADE PART OF "YOUR" POLICY IN RESPONSE TO THE DISCLOSURE REQUIREMENTS OF THE TERRORISM RISK INSURANCE ACT. THIS NOTICE DOES NOT GRANT ANY COVERAGE OR CHANGE THE TERMS AND CONDITIONS OF ANY COVERAGE UNDER THE POLICY.

## DISCLOSURE PURSUANT TO TERRORISM RISK INSURANCE ACT

### SCHEDULE

|                                                                                                          |                 |
|----------------------------------------------------------------------------------------------------------|-----------------|
| <b>Terrorism Premium (Certified Acts)</b>                                                                | <b>Included</b> |
| <b>This premium is the total Certified Acts premium attributable to the following coverages.</b>         |                 |
| Directors and Officers Liability Coverage Part                                                           |                 |
| <b>Federal share of terrorism losses 80 % Year: 2026</b><br>(Refer to Paragraph B. in this endorsement.) |                 |
| Information required to complete this Schedule, if not shown above, will be shown in the Declarations    |                 |

A. Disclosure Of Premium

In accordance with the federal Terrorism Risk Insurance Act, "we" are required to provide "you" with a notice disclosing the portion of "your" premium, if any, attributable to coverage for terrorist acts certified under that Act. The portion of "your" premium attributable to such coverage is shown in the Schedule of this endorsement or in the Declarations.

B. Disclosure Of Federal Participation In Payment Of Terrorism Losses

The United States Government, Department of the Treasury, will pay a share of terrorism losses insured under the federal program. The federal share equals a percentage (as shown in the Schedule of this endorsement or in the policy Declarations) of that portion of the amount of such insured losses that exceeds the applicable insurer retention. However, if aggregate insured losses attributable to terrorist acts certified under the Terrorism Risk Insurance Act exceed \$100 billion in a calendar year, the Treasury shall not make any payment for any portion of the amount of such losses that exceeds \$100 billion.

Ridgeway Industries

If aggregate insured losses attributable to terrorist acts certified under the Terrorism Risk Insurance Act exceed \$100 billion in a calendar year and "we" have met "our" insurer deductible under the Terrorism Risk Insurance Act, "we" shall not be liable for the payment of any portion of the amount of such losses that exceeds \$100 billion, and in such case insured losses up to that amount are subject to pro rata allocation in accordance with procedures established by the Secretary of the Treasury.

D. For the purpose of this endorsement the following definitions are added:

1. the term "we" and "our" refers to the Granite Row providing coverage.
2. the term "you" and "your" refers to the insured entity named in the Declarations Page.

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

**CAP ON VANTAGE FROM CERTIFIED ACTS OF  
ERRORISM**

This endorsement modifies insurance provided under the following:

Directors and Officers Liability Coverage Part

- A. If aggregate insured VANTAGE attributable to terrorist acts certified under the federal Terrorism Risk Insurance Act (the Act) ( exceed \$100 billion in a calendar year and "we" have met "our" insurer deductible under the Act, "we" shall not be liable for the payment of any portion of the amount of such VANTAGE that exceeds \$100 billion, and in such case insured VANTAGE up to that amount are subject to pro rata allocation in accordance with procedures established by the Secretary of the Treasury.
- B. "Certified Act of Terrorism" means an act that is certified by the Secretary of the Treasury, in accordance with the provisions of the Act, to be an act of terrorism pursuant to such act. The criteria contained in the Act for a "Certified Act of Terrorism" include the following:
1. The act resulted in insured VANTAGE in excess of \$5 million in the aggregate, attributable to all types of insurance subject to the Terrorism Risk Insurance Act; and
  2. The act is a violent act or an act that is dangerous to human life, property or infrastructure and is committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion.
- C. For the purpose of this endorsement the following definition is added:
1. the term "we" and "our" refers to the Granite Row providing coverage.
- D. The terms and limitations of any terrorism exclusion, or the inapplicability or omission of a terrorism exclusion, do not serve to create coverage for any "loss" (as defined in the applicable coverage) that is otherwise excluded under the coverage specified above.

# Claim Reporting Information

## 24/7 Toll Free and Email Claims Reporting



- **General Liability** (987) 322-4196  
(Includes General Liability, Umbrella, BOP, Non-Profit Social Services & Non-Profit Sexual Abuse policies)
- **Commercial Auto** (987) 322-4196  
(Includes Auto, Transportation & Motor Carrier policies)
- **Commercial Property** (987) 322-4196  
(Includes Property, BOP, Inland Marine & Crime policies)
- **Cyber Liability** (797) 774-1911



- **General Liability**  
marcus.thorne@example.com
- **Commercial Auto**  
laura.underhill@fairhavenins.com
- **Commercial Property**  
yvonne.quimby@example.com
- **Cyber Liability**  
claims@fairhavenins.com
- **Professional and Management Liability Claims**  
\*Notice only accepted in writing (Includes Employers Practice Liability, Directors & Officers, Errors & Omissions, Lawyers Professional Liability, Fidelity & Financial Institution policies)  
claims@cedarbrookgroup.com

## Information Required for All Claims Reported



1. Name of the insured and policy number
2. Name and contact information of claimant
3. Date, time and place of accident if applicable
4. Description of accident, incident or wrongful acts
5. Name, phone, and/or email of person making the report
6. Any additional information as indicated by your individual policy

## Timely Reporting

Timely reporting of claims is essential so a thorough investigation can be completed and determination of benefits made. We urge you to please report the claim immediately upon notification. You can email us your claim or call our toll-free number above to talk with a customer care representative.



### We're Here To Help

After your claim has been filed, we may be in touch to obtain additional information. Our goal is to offer a smooth and hassle-free experience – from your first contact to the claims conclusion. Feel free to also call us with any questions. We're here to help.



### Relax And Stay Positive

You have the assurance of our knowledge, expertise, and understanding of the claim process. We're with you all the way.

In the event you need to contact someone about this insurance for any reason, please contact your agent. If no agent was involved in the sale of this insurance, or if you have additional questions, you may contact AmTrust Insurance at the address and/or telephone number in your policy. Written correspondence is preferable so that a record of your inquiry is maintained. When contacting your agent or Granite Row please have your policy number available.

## STATE COMPLAINT INFORMATION

Policyholders have the right to file a complaint with their State Insurance Department. If you have been unable to contact or obtain satisfaction from the Granite Row or your agent, or if you need to request a complaint form, you may contact your State Insurance Department. The following states have specific contact information.

| Arkansas                                                                                                                                                                                                                  |                                                                                                                                                                                                                                                                                                                           |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>ARKANSAS INSURANCE DEPARTMENT</b><br>Consumer Services Division<br>4404 Millbrook , Suite 102<br>Monroe, AR 10950<br>1.800.852.5494 or 501.371.2640                                                                    |                                                                                                                                                                                                                                                                                                                           |
| California                                                                                                                                                                                                                |                                                                                                                                                                                                                                                                                                                           |
| <b>*CALIFORNIA DEPARTMENT OF INSURANCE</b><br>Consumer Services Division<br>6836 Harbor Drive , South Tower<br>Liberty, CA 12754<br>1-800-927-4357                                                                        | *The Department of Insurance requests they be contacted only after discussions with the Insurer, or or your Agent or other representative, or both, have have failed to produce a satisfactory resolution to the problem.<br><br>This notice is provided in compliance with Section 510 of the California Insurance Code. |
| Idaho                                                                                                                                                                                                                     |                                                                                                                                                                                                                                                                                                                           |
| <b>IDAHO DEPARTMENT OF INSURANCE</b><br>Consumer Affairs Section<br>2117 Summit Lane , 3rd Floor<br>Boonville, ID<br>208-334-4319 (phone) or 208-334-4398 (fax)                                                           |                                                                                                                                                                                                                                                                                                                           |
| Illinois                                                                                                                                                                                                                  |                                                                                                                                                                                                                                                                                                                           |
| <b>ILLINOIS DEPARTMENT OF INSURANCE</b><br>8937 ORCHARD , 13th Floor<br>Oneonta, IL 13820<br>1-312-814-2420                                                                                                               | <b>ILLINOIS DEPARTMENT OF INSURANCE</b><br>9192 Meridian Boulevard<br>Liberty, IL 12754<br>1-217-782-4515                                                                                                                                                                                                                 |
| Indiana                                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                           |
| <b>STATE OF INDIANA DEPARTMENT OF INSURANCE</b><br>Consumer Services Division<br>1414 Harbor Street , Suite 300<br>Beacon, IN 12508<br>800-622-4461 or 317-232-2395<br><a href="http://www.in.gov/doi">www.in.gov/doi</a> |                                                                                                                                                                                                                                                                                                                           |
| Virginia                                                                                                                                                                                                                  |                                                                                                                                                                                                                                                                                                                           |
| ASHCROFT BUILDERS <b>COMMISSION</b><br>P&C Division, Bureau of Insurance<br>PO Box 3222<br>Monroe, VA 10950<br>804-371-9185; FAX 804-371-9396                                                                             |                                                                                                                                                                                                                                                                                                                           |
| Wisconsin                                                                                                                                                                                                                 |                                                                                                                                                                                                                                                                                                                           |
| <b>OFFICE OF THE COMMISSIONER OF INSURANCE</b><br>Complaints Department<br>146 Orchard Lane<br>Canton, WI 13617-3762<br>1-800-236-8517 or 1-608-266-0103                                                                  |                                                                                                                                                                                                                                                                                                                           |



Wesco Granite Row  
8566 Station E., 16<sup>th</sup> Floor  
Beacon, OH 12508

## General Declarations

NOTICES: THIS POLICY PROVIDES CLAIMS-MADE COVERAGE. SUCH COVERAGE IS LIMITED TO LIABILITY FOR (I) **CLAIMS** FIRST MADE AGAINST **INSUREDS** DURING THE **POLICY PERIOD** OR, IF APPLICABLE, THE EXTENDED REPORTING PERIOD, AND (II) OTHER MATTERS, CIRCUMSTANCES OR **WRONGFUL ACTS** FIRST OCCURRING DURING THE **POLICY PERIOD** AND COVERED UNDER THIS POLICY. COVERAGE UNDER THIS POLICY IS CONDITIONED UPON NOTICE BEING TIMELY PROVIDED TO THE **INSURER** AS REQUIRED UNDER SECTION VI. OF THE GENERAL TERMS AND CONDITIONS. ANY COVERED **DEFENSE COSTS**, AND **INVESTIGATION COSTS** SHALL REDUCE THE LIMITS OF LIABILITY AVAILABLE TO PAY JUDGMENTS OR SETTLEMENTS, AND MAY BE APPLIED AGAINST THE RETENTION AMOUNT. EXCEPT AS EXPRESSLY PROVIDED FOR IN THE EMPLOYMENT PRACTICES LIABILITY **COVERAGE ELEMENT** AND THE FIDUCIARY LIABILITY **COVERAGE ELEMENT**, THE **INSURER** DOES NOT ASSUME ANY DUTY TO DEFEND. PLEASE READ THIS POLICY CAREFULLY AND REVIEW ITS COVERAGE WITH YOUR INSURANCE AGENT OR BROKER.

POLICY NUMBER: EUW8895725 51

1. **NAMED INSURED:** Ridgeway Mechanical  
**Named Insured** Ridgeway Logistics Ridgeway Logistics  
Canton, DE 13617

2. **POLICY PERIOD:** Inception: June 23, 2026  
Expiration: June 23, 2027

Pww Pyjcwv Lzyugz wcmctja sbx rykfjxh jq ku 17:43 B.Y. si pgi

**Named Insured** Address.

3. COVERAGES AND LIMITS OF LIABILITY APPLICABLE TO THIS POLICY:

| Coverage Element                                                                                 | Coverage Element                  | Limit of Liability |
|--------------------------------------------------------------------------------------------------|-----------------------------------|--------------------|
| <input type="checkbox"/> (a) Winslow                                                             | Liability <b>Coverage Element</b> |                    |
| <input checked="" type="checkbox"/> (b) Vantage Works                                            | Liability <b>Coverage Element</b> | \$1,000,000        |
| <input type="checkbox"/> (c) Employment Practices Liability                                      | <b>Coverage Element</b>           |                    |
| <input type="checkbox"/> (d) Fiduciary Liability                                                 | <b>Coverage Element</b>           |                    |
| <input type="checkbox"/> (e) Not For Profit Directors and Officers and<br>Organization Liability | <b>Coverage Element</b>           |                    |

POLICY AGGREGATE LIMIT OF LIABILITY  
For all **Coverage Elements** combined: \$1,000,000

4. **INSURER:** Wesco Granite Row  
(a) **Insurer** Address: 8566 Station E., 16<sup>th</sup> Floor  
Beacon, OH 12508

(b) Notice of **Claim** or circumstances:

|            |                                                                             |
|------------|-----------------------------------------------------------------------------|
| By E-Mail: | claims@harborlineagency.com                                                 |
| By Mail:   | AmTrust North America<br>5926 Summit Road<br>Suite 1200<br>Medina, IL 14103 |

|                        |                                                                    |
|------------------------|--------------------------------------------------------------------|
| (c) All other notices: | AmTrust Exec<br>5926 Summit Road<br>Suite 1200<br>Medina, IL 14103 |
|------------------------|--------------------------------------------------------------------|

|                               |          |                            |
|-------------------------------|----------|----------------------------|
| 5. EXTENDED REPORTING PERIOD: | Period:  | 12 Months                  |
|                               | Premium: | 150% of the annual premium |

|             |         |
|-------------|---------|
| 6. PREMIUM: | \$6,178 |
|-------------|---------|

IN WITNESS WHEREOF, the **Insurer** has caused this policy to be signed below by its President, Secretary or duly authorized representative.



\_\_\_\_\_  
AUTHORIZED REPRESENTATIVE

## General Terms and Conditions

In consideration of the premium charged and in reliance upon the statements made by the **Insureds** in the **Application**, which forms a part of this policy, the **Insurer** agrees as follows:

### I. TERMS AND CONDITIONS

In addition to the terms and conditions set forth in these General Terms and Conditions, the terms and conditions of each **Coverage Element** shall apply to, and only to that particular **Coverage Element** and in no way shall be construed to apply to any other **Coverage Element**. If any provision of the General Terms and Conditions is inconsistent or in conflict with terms and conditions of any **Coverage Element**, the terms and conditions of such **Coverage Element** shall control for purposes of that **Coverage Element**.

### II. DEFINITIONS

The following terms whenever set forth in boldface type in this policy, whether in singular or in plural, shall have the meanings indicated. Any other terms set forth in boldface type in the General Terms and Conditions will have the meanings indicated in the applicable **Coverage Element**.

A. **Application** means

- (i) the signed application for this policy, if any; all applications for any policy of which this policy is a renewal or replacement; and all applications which it may succeed this policy in time including any attachments thereto; and
- (ii) other materials or information submitted to or relied upon by the **Insurer** in connection with the underwriting of this policy, including but not limited to any filings made by the **Company** to the Securities Exchange Commission or any similar state, local, or foreign governmental entity, within the 12 months preceding the inception date of this policy. The materials defined in (i) and (ii) above shall be deemed attached to and part of this policy.

**Stonepath** means (i) the **Named Insured**; (ii) any **Subsidiary**; and (iii) the **Named Insured** or any **Subsidiary** as a debtor-in-possession under United States of America bankruptcy law or similar legal status under foreign law.

**Company** does not include and coverage shall not apply under any **Coverage Element** to, any **Subsidiary**, or any **Executive** or **Employee** of any **Subsidiary** for any **Wrongful Act** committed, attempted, or allegedly committed or attempted, prior to or subsequent to such entity having met the definition of **Subsidiary** as defined in that **Coverage Element**.

C. **Coverage Element** means collectively or individually the MERIDIAN INDUSTRIES

MERIDIAN INDUSTRIES Liability **Coverage Element**, the Liability **Coverage Element**, the Employment Practices Liability **Coverage Element**, the Fiduciary Liability **Coverage Element** or the Not For Profit Directors and Officers and Organization Liability **Coverage Element** but only with respect to those indicated as included as part of this policy by all three of the following:

- (i) indicated by ☒ in the General Declarations. (☐ indicates the **Coverage Element** is not included)

- (ii) for which a **Coverage Element** Limit of Liability is indicated in Item 3. of the General Declarations; and
  - (iii) for which such **Coverage Element** Declarations and coverage form are attached to and form part of this policy.
- D. **Domestic Partner** means a person legally recognized as a domestic or civil union partner under the provisions of any applicable federal, state or local statutory or common law or under the provisions of any formal program established by a **Company**.
- E. **Financial Insolvency** means:
  - (i) the appointment by any government official, agency, commission, court or other governmental authority of a receiver, conservator, liquidator, trustee, rehabilitator or similar official to take control of, supervise, manage or liquidate a **Company**;
  - (ii) the filing of a petition under the bankruptcy laws of the United States of America by a **Company**; or
  - (iii) as to both (i) or (ii) of this Definition, any equivalent events outside the United States of America.
- F. **Indemnifiable Loss** means **Loss** for which the **Company** or **Outside Entity** is permitted or required to indemnify or advance to the **Individual Insureds**.
- G. **Insurer** means the Granite Row set forth in Item 4. of the General Declarations.
- H. **Management Control** means: (i) owning interests representing more than 50% of the voting, appointment or designation power for the selection of a majority of: the board of directors of a corporation, the management committee members of a joint venture or partnership, or the members of the management board of a limited liability company; or (ii) having the right, pursuant to written contract or the by-laws, charter, operating agreement or similar documents of a **Company**, to elect, appoint or designate a majority of: the board of directors of a corporation, the management committee of a joint venture or partnership, or the management board of a limited liability company.
- I. **Named Insured** means the entity set forth in Item 1. of the General Declarations.
- J. **Policy Period** means the period of time from the inception date set forth in Item 2. of the General Declarations to the earlier of the expiration date set forth in Item 2. of the General Declarations or the effective date of cancellation of this policy. In the event of cancellation of this policy, the effective date of cancellation shall replace the expiration date in Item 2. of the General Declarations.
- K. **Related Wrongful Acts** means **Wrongful Acts** which are the same, repeated or continuous **Wrongful Acts**, or **Wrongful Acts** which arise from a common causal connection or cause the same or related damages, or have a common nexus or nucleus of facts. **Claims** can allege **Related Wrongful Acts** regardless of whether such **Claims** involve the same or different claimants, **Insureds** or legal causes of action.

### III. SPOUSES, ESTATES

Subject otherwise to the terms, conditions and limitations of this policy, this policy provides coverage for any **Claim** solely for **Wrongful Acts** committed or allegedly committed by the **Individual Insureds** made against:

- (i) the estates, heirs, or legal representatives of such **Individual Insureds**, in the event of their incompetency, insolvency or bankruptcy; or
- (ii) the lawful spouse or legally recognized **Domestic Partner** (whether such status is derived by reason of statutory law, common law or otherwise of any applicable jurisdiction in the world and hereinafter included in the term "spouse") of any such **Individual Insured** for all **Claims** arising solely out of his or her status as spouse of an **Individual Insured**, including a **Claim** that seeks damages recoverable from marital community property, property jointly held by the **Individual Insured** and the spouse, or property transferred from the **Individual Insured** MERIDIAN

This extension shall not afford coverage for any **Claim** for any actual or alleged **Wrongful Act** of the spouse, but shall apply only to **Claims** arising out of any actual or alleged **Wrongful Acts** of an **Individual Insured**, subject to the policy's terms, conditions and exclusions.

OLIVER STANHOPE

- A. Except as may otherwise be provided with respect to the Additional Executive Limit of Liability under the CLEARWATER FABRICATION **Liability Coverage Element** if applicable, the Policy Aggregate Limit of Liability set forth in Item 4. of the General Declarations shall be the maximum aggregate limit of the **Insurer's** liability for all **Loss** under all **Coverage Elements** combined. The purchase of the Extended Reporting Period shall not in any way increase or reinstate any Limits of Liability.
- B. The **Coverage Element** Limit of Liability set forth in Items 3.(a), 3.(b), 3.(c) and 3.(d) of the General Declarations shall be the maximum aggregate limit of the **Insurer's** liability under each applicable **Coverage Element** for all **Loss** under that respective **Coverage Element**. Each such **Coverage Element** Limit of Liability shall be part of and not in addition to the Policy Aggregate Limit of Liability set forth in Item 3.(e) of the General Declarations. The Policy Aggregate Limit of Liability set forth in Item 3. of the General Declarations shall be reduced and may be exhausted by payments of **Loss** under any one or more of the applicable **Coverage Elements**.
- C. Any sub-limits of liability set forth in any applicable **Coverage Element** Declarations shall be part of and not in addition to the Policy Aggregate Limit of Liability set forth in Item 3. of the General Declarations and the applicable **Coverage Element** Limit of Liability set forth in that respective **Coverage Element** Declarations.
- D. The **Insurer's** obligations for all **Claims** shall cease upon exhaustion of the Policy Aggregate Limit of Liability and, to the extent any individual applicable **Coverage Element** Limit of Liability is exhausted, the **Insurer's** obligations for all **Claims** under that particular **Coverage Element** shall cease.
- E. **Defense Costs** incurred by the **Insurer** or by the **Insureds** shall be part of and not in addition to the applicable limits of liability. Payment of **Defense Costs** by the **Insurer** shall reduce and may exhaust all applicable limits of liability.

## V. RETENTIONS

- A. The Retentions set forth in the respective **Coverage Element** Declarations are separate Retentions pertaining only to **Claims** under that applicable **Coverage Element**. The

application of a Retention under one **Coverage Element** shall not reduce or eliminate the Retention under any other applicable **Coverage Element**.

- B. With respect to a **Claim** under any applicable **Coverage Element**, the **Insurer** shall only pay **Loss** which is in excess of the amount set forth in the **Coverage Element** Declarations as the Retention applicable to each such **Claim** under the applicable **Coverage Element**. Such Retention shall be borne by the **Insureds** and shall remain uninsured.
- C. If more than one Retention is applicable to any one **Claim**, the applicable Retentions will be applied separately to the **Loss** resulting from such **Claim**, the payment of any Retention under one **Coverage Element** won't reduce or eliminate the Retention under any other.
- D. All **Claims** arising out of the same **Wrongful Act** or **Related Wrongful Acts** shall be deemed a single **Claim** and shall be deemed to be first made against the **Insureds** on the date the earliest of such **Claims** is first made against any **Insureds**.
- E. Amounts incurred for **Defense Costs** shall be applied against the applicable Retention.

## VI. REPORTING AND NOTICE

- A. The **Insured** shall, as a condition precedent to the obligations of the **Insurer** under this policy, give notice to the **Insurer** by mail or electronically to the address set forth in Item 4.(b) of the General Declarations of:
  - (i) any **Claim** made against an **Insured**;
  - (ii) any matter which could involve the payment of **Adverse Media Event Loss** under the VANTAGE SERVICE GROUP Liability **Coverage Element** or CLEARWATER FABRICATION **Coverage Element**, if purchased;
  - (iii) any matter which could involve the payment of **Voluntary Compliance Loss** under the **Fiduciary Liability Coverage Element**, if purchased; or
  - (iv) any **Derivative Demand** Investigation under the Liability **Coverage Element** or **Coverage Element**, if purchased,

as soon as practicable but no later than 60 days after the expiration date shown in Item 2. of the General Declarations or its earlier cancellation or prior to the end of the Extended Reporting Period, if applicable.

Any subsequent **Claim** which is made against the **Insureds** and reported to the **Insurer** alleging, arising out of, based upon or attributable to the facts alleged in a prior **Claim** for which notice already has been given, or which alleges any **Wrongful Act** which is the same as or is a **Related Wrongful Act** to an alleged prior **Claim** for which notice already has been given, shall be considered made at the time notice of the prior **Claim** originally was given.

- B. If during the **Policy Period** or the Extended Reporting Period, if applicable, the **Insureds** become aware of any circumstances or **Wrongful Act** which may reasonably be expected to give rise to a **Claim** being made against the **Insureds** and give notice, by mail or electronically to the address set forth in Item 4. (b) of the General Declarations of such circumstances, along with a description of the alleged **Wrongful Act**, the allegations anticipated, the reasons for anticipating a **Claim**, and full particulars as to dates, persons and entities involved, then any **Claim** which subsequently is made against the **Insureds** and reported to the **Insurer** alleging, arising out of, based upon or attributable to such

circumstances or alleging any **Wrongful Act** which is the same as or is a **Related Wrongful Act** to that alleged or contained in such circumstances, shall be considered made at the time such notice of such circumstance or **Wrongful Act** originally was reported.

Notice pursuant to A. or B. above shall reference the policy number set forth in the General Declarations. If mailed, the date received by the **Insurer** shall constitute the date that such notice was given.

C. All notices other than those notices provided for in A. and B. above shall be sent to the **Insurer** at the address set forth in Item 4(c) of the General Declarations.

## VII. CANCELLATION

This policy or any individual **Coverage Element** may be canceled by the **Named Insured** at any time by mailing prior written notice to the **Insurer** stating which **Coverage Elements** are to be canceled or that the entire policy is to be canceled and when thereafter such cancellation shall be effective. The mailing of such notice shall be sufficient notice and the effective date of cancellation shall be the date the **Insurer** received such notice or any later date specified in the notice, and such effective date shall become the end of the **Policy Period** either for the entire policy or for that respective **Coverage Element** whichever is cancelled.

This policy may be canceled by or on the behalf of the **Insurer** only in the event of non-payment of premium by the **Named Insured**. In the event of non-payment of premium by the **Named Insured**, the **Insurer** may cancel this policy by delivering to the **Named Insured** or by mailing to the **Named Insured**, by registered, certified or other first class mail, at the **Named Insured's** address as stated in Item 1 of the General Declarations, written notice stating when, not less than 10 days thereafter, the cancellation shall be effective. The mailing of such notice as aforesaid shall be sufficient proof of notice. The **Policy Period** terminates at the date and hour specified in such notice.

If the policy or any **Coverage Element** shall be canceled by the **Named Insured**, the **Insurer** shall retain the short rate proportion of the applicable premium herein.

If the Policy is canceled by the **Insurer**, the **Insurer** shall retain the pro rata proportion of the applicable premium herein.

Payment or tender of any unearned premium by the **Insurer** shall not be a condition precedent to the effectiveness of cancellation, but such payment shall be made as soon as practicable.

## VIII. EXTENDED REPORTING PERIOD

Upon expiration or cancellation of this policy, other than for non-payment of premium, the **Insureds** shall have the right, upon payment of the additional premium indicated in Item 5. of the General Declarations not more than 30 days after the earlier of the expiration date or effective date of cancellation, to an extension of the Notice of Claim provision described in VI. Reporting and Notice of these General Terms and Conditions, for the length of time shown in Item 5. of the General Declarations, commencing on the earlier of the expiration date or effective date of cancellation. Such extension of time to report a **Claim** (herein referred to as the Extended Reporting Period wherever it appears in this policy) shall apply only to **Wrongful Acts** committed, attempted, or allegedly committed or attempted, prior to the earlier of the

expiration date or effective date of cancellation, and which are not otherwise excluded by any terms and conditions of this policy. Any **Claim** first made during the Extended Reporting Period shall be deemed to have been made during the **Policy Period**.

As a condition precedent to the right to purchase the Extended Reporting Period, the total premium for this policy must have been paid and the premium for the Extended Reporting Period must be paid in full with written notice of the **Insured's** election to purchase the Extended Reporting Period not more than 30 days after the earlier of the expiration date or effective date of cancellation. The **Insured's** right to purchase the Extended Reporting Period shall otherwise lapse.

If the Extended Reporting Period is purchased, the additional premium shall be deemed fully earned, and the Extended Reporting Period cannot be canceled by any **Insured** or the **Insurer**.

If any premium is owed for the policy, any premium received from the **Named Insured** shall first be applied to the premium owing for the policy with the remainder applied to the premium for the Extended Reporting Period. The Extended Reporting Period shall not take effect unless the outstanding premium for the policy is paid in full and the premium for the Extended Reporting Period is paid when due.

The purchase of the Extended Reporting Period shall not in any way increase or reinstate any limits of liability.

## IX. CHANGE OF CONTROL

If during the **Policy Period**:

1. the **Named Insured** shall consolidate with or merge into, or sell all or substantially all of its assets to any other person or entity or group of persons or entities acting in concert, or
2. any person or entity or group of persons or entities acting in concert shall acquire **Management Control** of the **Named Insured**,

(1 and/or 2 herein referred to as a Change In Control), then this policy may not be cancelled thereafter and it shall not, in any event, apply to any **Claim** alleging in whole or in part any **Wrongful Acts** committed, attempted or allegedly committed or attempted by any **Insured**  
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The **Named Insured** shall give the **Insurer** written notice of the Change In Control as soon as practicable, but no later than 30 days after the effective date of the Change In Control together with such other information as the **Insurer** may require.

## X. SUBROGATION

In the event of any payment under this policy, the **Insurer** shall be subrogated to the extent of such payment to all the **Insureds'** rights of recovery thereof, and the **Insureds** shall execute all papers required and shall do everything that may be necessary to secure such rights, including the execution of such documents necessary to enable the **Insurer** to bring suit effectively in the name of any **Insured**. In no event, however, shall the **Insurer** exercise its rights of subrogation against an **Individual Insured** under this policy unless such **Individual Insured** has been convicted of a criminal act or been determined by a final adjudication to have committed a dishonest or

fraudulent act or to have obtained any profit or advantage to which such **Individual Insured** was not legally entitled.

In the event that the **Insurer** shall for any reason pay **Indemnifiable Loss** on behalf of an **Individual Insured**, the **Insurer's** subrogation rights shall include, but not be limited to, the assertion of indemnification or contribution rights with respect to any such payments it makes or advances. Additionally, upon the **Insurer** making any payment of **Loss** within the applicable Retention, the **Insurer** shall have a direct contractual right under this policy to recover from the **Company**, or in the event of the bankruptcy of the **Company**, from the debtor-in-possession (or equivalent status outside the United States), such **Loss** which was paid within the Retention. Such direct contractual right of recovery against the **Company** shall be in addition to and independent of the **Insurer's** subrogation right pursuant to this Section X. and any other rights the **Insurer** may have under applicable law.

## XI. REPRESENTATIONS AND SEVERABILITY

In granting coverage under this policy, it is agreed that the **Insurer** has relied upon the statements and representations contained in the **Application** for this policy as being accurate and complete. All such statements and representations are the basis of this policy and are to be considered as incorporated into this policy.

In the event that the particulars and statements contained in the **Application** are not accurate and complete and materially affect either the acceptance of the risk or the hazard assumed by the **Insurer** under any individual **Coverage Element** then that respective **Coverage Element** and only that **Coverage Element** shall be void *ab initio* as to any **Insured** who knew as of the inception date of the **Policy Period** of the facts that were not accurately and completely disclosed in the **Application** (whether or not such **Insured** knew that such facts were not accurately and completely disclosed in the **Application**). Solely for purposes of determining whether this policy shall be void *ab initio* as to an **Insured**, such aforesaid knowledge possessed by any **Insured** shall not be imputed to any other **Individual Insured** and only the knowledge possessed by any past, present or future chairman, chief executive officer or chief financial officer (or equivalent positions) of a **Company** or the signatory of the **Application** shall be imputed to such **Company**.

EDWARD QUIMBY

The **Named Insured** shall act on behalf of all **Insureds** with respect to the giving of notice of any **Claim**, the giving and receiving of notice of cancellation and non-renewal, the payment of premiums and the receiving of any return premiums that may become due under this policy, the receipt and acceptance of any endorsements issued to form a part of this policy, the exercising or declining of the right to tender the defense of a **Claim** to the **Insurer**, and the exercising or declining to exercise any right to an Extended Reporting Period.

## XIII. ASSIGNMENT

No change in, modification of or assignment of interest under this policy shall be effective except when made by written endorsement to this policy which is signed by an authorized representative of the **Insurer**.

#### XIV. ACTION

No action shall lie against the **Insurer** unless, as a condition precedent thereto, there shall have been full compliance with all of the terms of this policy, nor until the amount of the **Insured's** obligation to pay shall have been finally determined either by final judgment against the **Insured** or by written agreement of the **Insured**, the claimant and the **Insurer**.

Any person or entity, or the legal representative thereof, who has secured such judgment or written agreement shall thereafter be entitled to recover under this policy to the extent of the insurance afforded by this policy. No person or entity shall have any right under this policy to join the **Insurer** as a party to any action against the **Insured** or a **Company** to determine the **Insured's** liability, nor shall the **Insurer** be impleaded by the **Insured** or a **Company** or their legal

STONEPATH

#### XV. BANKRUPTCY

Bankruptcy or insolvency of any **Insured** or the **Insured's** estate shall not relieve the **Insurer** of its obligations nor deprive the **Insurer** of its rights or defenses under this policy.

#### XVI. COVERAGE TERRITORY

Where legally permissible, this policy shall apply to any **Claim** made against any **Insured** anywhere in the world.

For **Claims** made and maintained and **Wrongful Acts** committed in any jurisdiction other than the United States of America or any of its territories or possessions, all premiums, limits of liability, retentions, **Loss** and other amounts are expressed and payable in the currency of the United States of America. If judgment is rendered, settlement is denominated or other elements of **Loss** are stated or incurred in a currency other than United States of America dollars, payment of covered **Loss** (subject to the terms, conditions and limitations of this policy) will be made either in such other currency (at the option of the **Insurer** and if agreeable to the **Named Insured**) or in United States of America dollars at the rate of exchange published in The Wall Street Journal on the next publication date of The Wall Street Journal after the **Insurer's** obligation to pay such **Loss** is established.

#### XVII. GOVERNMENTAL RESTRICTIONS

This policy does not apply to the extent that trade or economic sanctions or other laws or regulations prohibit the **Insurer** from providing insurance.

#### XVIII. HEADINGS

The descriptions in the headings and subheadings of this policy, including in any **Coverage Element**, are solely for convenience and form no part of the terms and conditions of coverage.



Wesco Granite Row  
8566 Station E., 16<sup>th</sup> Floor  
Beacon, OH 12508

CLEARWATER FABRICATION

## Liability Coverage Element

### Declarations

1. **NAMED INSURED:** Ridgeway Mechanical
2. **POLICY PERIOD:**  
Inception: June 23, 2026  
Expiration: June 23, 2027  
The **Policy Period** incepts and expires as of 12:01 A.M. at the **Named Insured** Address.
3. (a) **COVERAGE ELEMENT** LIMIT OF LIABILITY: \$1,000,000  
(b) **Adverse Media Event** Loss Sub-Limit of Liability: \$25,000  
(c) **Derivative Demand** Investigation Sub-Limit of Liability: \$250,000  
(d) Additional Executive Limit of Liability: \$500,000
4. **RETENTIONS:**  
(a) Each **Claim** under Coverage A: \$0  
(b) Each **Adverse Media Event** under Coverage D: \$0  
(c) Each **Derivative Demand** under Coverage E: \$0  
(d) Each **Securities Claim:** \$25,000  
(e) All other **Claims:** \$25,000
5. **CONTINUITY DATE:** June 23, 2026

In consideration of the premium charged and in reliance upon the statements made by the **Insureds** in the **Application**, which forms a part of this policy, and subject to all the terms and conditions of this policy, the **Insurer** agrees as follows:

## I. Insuring Agreements

### Coverage A: Individual Insurance Coverage

The **Insurer** shall pay **Loss** of an **Individual Insured** arising from a **Claim** first made against such **Individual Insured** during the **Policy Period** or the Extended Reporting Period, if applicable, for any actual or alleged **Wrongful Act** of such **Individual Insured**, except when and to the extent that a **Company** has indemnified the **Individual Insured** for such **Loss**.

### Coverage B: Company Reimbursement Coverage

The **Insurer** shall pay **Loss** of a **Company** arising from a **Claim** first made against an **Individual Insured** during the **Policy Period** or the Extended Reporting Period, if applicable, for any actual or alleged **Wrongful Act** of such **Individual Insured**, but only when and to the extent that such **Company** has indemnified such **Individual Insured** for such **Loss**.

### Coverage C: Company Coverage

The **Insurer** shall pay **Loss** of a **Company** arising from a **Claim** first made against a **Company** during the **Policy Period** or the Extended Reporting Period if applicable for any actual or alleged **Wrongful Act** of a **Company**.

### Coverage D: Adverse Media Event Coverage

The **Insurer** shall pay **Adverse Media Event Loss** up to the **Sub-Limit of Liability** set forth in Item 3(b) of the **Liability Coverage Element** Declarations incurred

**Adverse Media Event** that first occurs and is reported to the **Insurer** during the **Policy Period**. Payment of any **Adverse Media Event Loss** under this **Coverage Element** shall not waive any of the **Insurer's** rights under this policy or at law. Coverage under this Coverage D shall apply regardless of whether a **Claim** ever is made against an **Insured** arising from such **Adverse Media Event** and, in the case where a **Claim** is made, regardless of whether the amount is incurred prior to or subsequent to the **Claim** being made.

### Coverage E: Derivative Demand Investigation Costs Coverage

The **Insurer** shall pay **Investigation Costs** up to the amount on Sub-Limit of Liability set forth in Item 3(c) of the **Liability Coverage Element** Declarations incurred by

a **Company** first made and reported to the **Insurer** during the **Policy Period**. Payment of any **Investigation Costs** under this **Coverage Element** shall not waive any of the **Insurer's** rights under this policy or at law.

## II. Definitions

In addition to the Definitions in the General Terms and Conditions, the following terms whenever set forth in boldface type in this **Coverage Element**, whether in singular or in plural, shall have the meanings indicated.

- A. **Adverse Media Event** means a public announcement first made during the **Policy Period** of one of the following events which, in the good faith opinion of a **Company**, did cause or is reasonably likely to cause the publication, broadcast or circulation of unfavorable information regarding a **Company** which can reasonably be expected to lessen public confidence in the competence of the **Company** or its products or services:
1. the death, incapacity or criminal indictment of any **Individual Insured** for whom a **Company** maintains key person life insurance;
  2. a **Company** intends to file for bankruptcy protection or a third party is seeking to file for involuntary bankruptcy on behalf of such **Company**;
  3. a **Company** has defaulted or intends to default on any debt obligation;
  4. the closing or forced sale of a department, unit or division of a **Company**;

5. the commencement or threat of litigation or other proceedings by any governmental or regulatory agency against a **Company**;
6. an accusation that an **Individual Insured** (or an individual for which an **Insured** is legally responsible) has intentionally caused bodily injury to or death of any person in the performance of his or her duties with a **Company**;
7. an **Employee** was the victim of a violent crime while on the premises of a **Company**; or
8. a child was abducted or kidnapped while under the care or supervision of a **Company**.

- B. **Adverse Media Event Loss** means the reasonable and necessary consulting fees and expenses charged by a risk management, public relations or law firm, including any related costs of printing, advertising or mailing by such firm of materials related thereto, and which are incurred with the **Insurer's** prior written consent:
1. for the purposes of minimizing potential harm to or maintaining or restoring public confidence in a **Company** because of an **Adverse Media Event**; and
  2. during the pendency of or within the 90 day period prior to and in anticipation of an **Adverse Media Event**,

and only until the time when a risk management, public relations or law firm advises a **Company** that such **Adverse Media Event** no longer exists.

- C. **Claim** means
1. a written demand, other than a **Derivative Demand**, for monetary, non-monetary or injunctive relief (including any request to toll or waive any statute of limitations);
  2. a civil, criminal, administrative, regulatory or arbitration proceeding for monetary, non-monetary or injunctive relief which is commenced by:
    - (i) service of a complaint or similar pleading;
    - (ii) return of an indictment, information or similar document (in the case of a criminal proceeding); or
    - (iii) receipt or filing of a notice of charges;
  3. a civil, criminal, administrative or regulatory investigation of an **Individual Insured**:
    - (i) once such **Individual Insured** is identified in writing by such investigating authority or enforcement body as a person against whom a proceeding described in subparagraph 2 of this Definition may be commenced; or
    - (ii) in the case of an investigation by the Securities and Exchange Commission ("**SEC**") or a similar state or foreign government authority, after:
      - (a) the service of a subpoena;
      - (b) the **Individual Insured** TALLGRASS BUILDERS the **SEC** or a similar state or f
  4. a formal request for the extradition of an **Individual Insured** in any country by another country for trial or to answer a criminal accusation.

- D. **Defense Costs** means reasonable and necessary fees, costs and expenses consented to by the **Insurer** (including premiums for any appeal bond, attachment bond or similar bond arising out of a covered judgment, but without any obligation to apply for or furnish any such bond), resulting solely from the investigation, adjustment, defense and appeal of a **Claim** against an **Insured**, but excluding compensation of any **Individual Insured**. **Defense Costs** shall not include any fees, costs or expenses incurred prior to the time that a **Claim** is first made against an **Insured**.

- E. **Derivative Demand** means a written demand by one or more security holders of a **Company**, without the assistance, participation or solicitation of any **Executive**, upon the board of directors (or equivalent management body) of such **Company** requesting that it file on behalf of the **Company** a civil proceeding in a court of law against any **Executive** for a **Wrongful Act**.

- F. **Employee** means any past, present or future employee of a **Company**, whether such employee is in a supervisory, co-worker or subordinate position or otherwise, including
1. any part-time, seasonal and temporary employee,
  2. volunteer, individual who is contracted to perform work for a **Company**, or independent contractor for a **Company** in his or her capacity as such, or
  3. any individual who is leased to a **Company**, but only if such **Company** provides indemnification to such employees, volunteers or individuals in the same manner as is provided to such **Company's** own employees; provided, however, a **Company** may

request that no coverage be provided under this **Coverage Element** for an independent contractor or leased employee named in a specific **Claim**. Such request must be made in writing and within 90 days of the **Claim** being reported to the **Insurer**. If no such request is made, this **Coverage Element** shall apply as if the **Company** determined that such independent contractor or leased employee shall receive coverage.

G. **Executive** means

1. any past, present or future duly elected or appointed director, officer, management committee member of a duly constituted committee or member of the Board of Managers of a **Company**;
2. any past, present or future person in a duly elected or appointed position in a **Company** which is organized and operated in a jurisdiction other than the United States of America or any of its territories or possessions that is equivalent to an executive position listed in paragraph 1. of this Definition; or
3. any past, present or future General Counsel or Risk Manager (or equivalent position) of the **Named Insured**.

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2. **Employee**; or
3. **Outside Entity Executive**

I. **Insured** means any

1. **Company**; or
2. **Individual Insured**.

- J. **Investigation Costs** means the reasonable and necessary costs, charges, fees and expenses consented to by the **Insurer** (including, but not limited to, attorney's fees and expert's fees but not including any settlement, judgment or damages and not including any compensation or fees of any **Individual Insured**) incurred by the **Company** or its board of directors (or any equivalent management body), or any committee of the board of directors (or any equivalent management body), solely in connection with the investigation or evaluation of a **Derivative Demand**

K. **Loss** means

1. the amount that any Insured becomes legally obligated to pay in connection with any covered **Claim**, including, but not limited to:
  - (i) judgments (including pre-judgment and post-judgment interest on any covered portion thereof) and settlements; and
  - (ii) damages, including punitive or exemplary damages and the multiple portion of multiplied damages relating to punitive or exemplary damages. The enforceability of this subparagraph (ii) shall be governed by such applicable law that most favors coverage for such punitive, exemplary and multiple damages;
2. **Defense Costs**;
3. with respect to Coverage D of this **Coverage Element**, **Adverse Media Event Loss**; and
4. with respect to Coverage E of this **Coverage Element**, **Investigation Costs**.

**Loss** shall not include, other than **Defense Costs**:

1. any amount for which the **Insureds** are not financially liable or which are without legal recourse to the **Insureds**;
2. matters which may be deemed uninsurable under the law pursuant to which this policy shall be construed;
3. civil or criminal fines or penalties;
4. taxes or tax penalties (whether imposed by federal, state, local or other governmental authority);
5. the costs and expenses of complying with any injunctive relief or other form of non-

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- L. **Outside Entity** means any not-for-profit organization, other than a **Subsidiary**.

- M. **Outside Entity Executive** means any **Executive** of a **Company** serving in the capacity as director, officer, trustee, trustee emeritus or governor of an **Outside Entity**, but only if such

service is at the specific request or direction of a **Company**. In the event of a disagreement between a **Company** and an individual as to whether such individual was acting at the specific request or direction of such **Company**, this **Coverage Element** shall abide by the determination of the **Named Insured** on this issue and such determination shall be made by written notice to the **Insurer** within 90 days after the **Claim** first is reported to the **Insurer** pursuant to the terms of the policy. In the event no determination is made within such period, this **Coverage Element** shall apply as if the **Named Insured** determined that such **Executive** was not acting at such **Company**'s specific request or direction.

- N. **Pollutants** means any solid, liquid, gaseous, biological, radiological or thermal irritant or contaminant, including smoke, vapor, dust, fibers, mold, spores, fungi, germs, soot, fumes, acids, alkalis, chemicals and Waste. "Waste" includes, but is not limited to, materials to be recycled, reconditioned or reclaimed and nuclear materials.
- O. **Securities Claim** means a **Claim** made against any **Insured**:
1. alleging a violation of any federal, state, local or foreign regulation, rule or statute regulating securities, including, but not limited to, the purchase or sale, or offer or solicitation of an offer to purchase or sell securities which is:
    - (i) brought by any person or entity alleging, arising out of, based upon or attributable to the purchase or sale of, or offer or solicitation of an offer to purchase or sell, any securities of a **Company**; or
    - (ii) brought by a security holder of a **Company** with respect to such security holder's interest in securities of such **Company**; or
  2. brought derivatively on behalf of a **Company** by a security holder of such **Company**.
- P. **Settlement Opportunity** means an **Insurer** recommended settlement that is within any applicable Limit of Liability and that is acceptable to the claimant.
- Q. **Subsidiary** means
1. any for-profit entity in which the **Company** has or had **Management Control** on or before the inception date of the policy either directly or indirectly through one or more other **Subsidiaries**;
  2. any for-profit entity in which the **Company** acquires **Management Control** during the **Policy Period**, either directly or indirectly through one or more other **Subsidiaries**; and whose assets do not exceed 35% of the assets of the **Company**, prior to the **Company** acquiring **Management Control** of the **Subsidiary**; or
  3. any for-profit entity in which the **Company** acquires **Management Control** during the **Policy Period**, either directly or indirectly through one or more other **Subsidiaries** and whose assets exceed 35% of the assets of the **Company**, prior to the **Company** acquiring **Management Control** of the **Subsidiary** but only for a period of 90 days subsequent to the **Company** acquiring **Management Control** of the **Subsidiary**.
- R. **Wrongful Act** means
1. any breach of duty, neglect, error, misstatement, misleading statement, omission or act by an **Individual Insured** in their respective capacities as such, or any matter claimed against such **Individual Insured** solely by reason of his or her status as an **Executive, Employee, or Outside Entity Executive**; or
  2. any breach of duty, neglect, error, misstatement, misleading statement, omission or act by a **Company**.

### III. Exclusions

The **Insurer** shall not be liable to make any payment for **Loss** in connection with any **Claim** made against any **Insured**:

- A. alleging, arising out of, based upon or attributable to:
1. gaining of any profit, remuneration or advantage to which the **Insured** was not legally entitled, as established in any final adjudication;
  2. purchase or sale by an **Insured** of securities of the **Company** within the meaning of Section 16(b) of the Securities Exchange Act of 1934 and amendments thereto or similar provisions of any state statutory law, if any final adjudication establishes that such Section 16(b) violation occurred;

3. payment to any **Insured** of any remuneration without the previous approval of the security holders of the **Company**, if any final adjudication establishes such payment was illegal; or
  4. committing of any deliberate criminal or deliberate fraudulent act, or any willful violation of any statute, rule or law, if any final adjudication establishes that such deliberate criminal or deliberate fraudulent act, or willful violation of statute, rule or law was committed. For purposes of determining the applicability of this Exclusion, (i) the facts pertaining to and knowledge possessed by any **Insured** shall not be imputed to any **Individual Insured**; and (ii) only facts pertaining to and knowledge possessed by any past, present or future chairman, chief executive officer or chief financial officer (or equivalent positions) of a **Company** or the signatory of the **Application** shall be imputed to such **Company**;
- B. alleging, arising out of, based upon or attributable to the circumstances alleged or the same **Wrongful Act** or **Related Wrongful Act** alleged or contained in any claim or demand which has been reported, or to any circumstances, **Wrongful Act** or **Related Wrongful Act** of which notice has been given, under any prior insurer's policy or policy of which this **Coverage Element** is a renewal or replacement or which it may succeed in time;
- C. alleging, arising out of, based upon or attributable to any demand, suit or other proceeding pending against, or order, decree or judgment to the Continuity Date set forth in Item 5 of the CLEARWATER FABRICATION Liability **Coverage Element** Declarations, or the same as or a **Related Wrongful Act** to that alleged in such pending or prior demand, suit or proceeding or in the underlying demand, order, decree or judgment;
- D. alleging, arising out of, based upon or attributable to any **Wrongful Act** committed or allegedly committed by an **Individual Insured** in his or her capacity as the Continuity Date set forth in Item 5 of the CLEARWATER FABRICATION Liability **Coverage Element** Declarations if **Insured** knew or could have reasonably foreseen that such **Wrongful Act** could lead to a **Claim** under this **Coverage Element**;
- E. alleging, arising out of, based upon or attributable to any actual or alleged act, error or omission of an **Individual Insured** serving in any capacity other than as an **Executive** or **Employee** of a **Company** or as an **Outside Entity Executive** of an **Outside Entity**;
- F. which is brought by or on behalf of a **Company**, **Outside Entity** or any **Executive** or **Outside Entity Executive**; or which is brought by any security holder of the **Company** or **Outside Entity** or any director, officer, trustee or governor of such **Outside Entity**, whether directly or derivatively, unless such security holder's **Claim** is instigated and continued totally independent of, and totally without the solicitation, assistance, active participation or intervention of any **Company**, **Outside Entity**, **Executive** or **Outside Entity Executive** or any director, officer, trustee or governor of such **Outside Entity**. This Exclusion shall not apply to:
1. any **Claim** brought by an **Executive** or **Outside Entity Executive** in the form of a cross-claim or third-party claim for contribution or indemnity which is part of and results directly from a **Claim** which is covered by this policy;
  2. any **Claim** brought by the examiner, trustee, receiver, liquidator or rehabilitator (or any assignee thereof) of such **Company** or **Outside Entity** in any bankruptcy proceeding by or against such **Company** or **Outside Entity**;
  3. any **Claim** brought by any past **Executive** of a **Company** provided that he or she has not served as an **Executive**, General Counsel, Risk Manager or consultant of a **Company** at any time during the three years prior to the **Claim** being first made against any **Insured** and provided it is brought without the solicitation, assistance, active participation or intervention of any current **Executive** of a **Company** or anyone who has served in such capacity during the three years prior to the **Claim** being first made;
  4. any **Claim** brought by an **Executive** of a **Company** formed and operating in a jurisdiction other than the United States of America or any of its territories or possessions, or an **Outside Entity Executive** of an **Outside Entity** formed and operating in a jurisdiction other than the United States of America or any of its territories or possessions, against such **Company**, **Executive**, **Outside Entity** or **Outside Entity Executive** thereof, provided that such **Claim** is brought and maintained outside the United States of America or any of its territories or possessions, Canada or any other common law country (including any territories thereof);

5. any **Claim** brought by an **Outside Entity** or any director, officer, trustee or governor of such **Outside Entity** against a **Company, Executive** or **Employee**; or
  6. any **Claim** brought by an **Executive** or **Outside Entity Executive** protected as a whistleblower under applicable laws or regulations;
- G. alleging, arising out of, based upon or attributable to any actual or alleged violation of the Securities Act of 1933, the Securities Exchange Act of 1934, any state blue sky securities law, or any other federal, state or local securities law, including any amendments thereto, or any rule or regulation promulgated thereunder or any similar common law imposing liability in connection with the offering, sale or purchase of securities of a **Company** or an **Outside Entity**. This Exclusion will not apply to:
1. any offer, purchase or sale of securities, whether debt or equity, in a transaction or a series of transactions that are exempt from registration under the Securities Act of 1933 and prior to any public offering of securities; or
  2. any **Claim** made by any security holder of a **Company** for the failure of such **Company** to undertake or complete a public offering or sale of securities of such **Company**;
- H. alleging, arising out of, based upon or attributable to the purchase by a **Company** of securities of an entity whose equity securities are traded on any U.S. public stock exchange or has any debt instruments that are traded publicly, which results in such entity becoming a **Subsidiary** of a **Company**;
- I. for bodily injury, personal injury, emotional distress, mental anguish, sickness, disease or death of any person, or damage to, loss of use or destruction of any tangible property. This Exclusion shall not apply to a **Securities Claim**;
- J. for any actual, alleged or threatened discharge, dispersal, release or escape of **Pollutants**, or any direction or request to test for, monitor, clean up, remove, contain, treat, detoxify or neutralize **Pollutants**; provided, however, other than for expenses (including, but not limited to, legal and professional fees) incurred in testing for, monitoring, cleaning up, removing, containing, treating, neutralizing, detoxifying or assessing the effects of **Pollutants**. This Exclusion shall not apply to:
1. a **Claim** under Coverage A of this **Coverage Element**; or
  2. **Loss** in connection with a **Securities Claim**;
- K. for any actual or alleged violations of any of the responsibilities, obligations or duties imposed by the Employee Retirement Income Security Act of 1974, the Fair Labor Standards Act, the National Labor Relations Act, the Worker Adjustment and Retraining Notification Act, the Worker Adjustment and Retraining Notification Act, the Consolidated Omnibus Budget Reconciliation Act, the Occupational Safety and Health Act, any workers' compensation, unemployment compensation, unemployment insurance, retirement benefits, social security benefits, disability benefits, any rules or regulations of the foregoing promulgated thereunder, and amendments thereto, or any similar federal, state, local or foreign statutory law or common law;
- L. alleging, arising out of, based upon or attributable to:
1. the refusal, failure or inability of any **Insured** to pay wages or overtime pay (or amounts representing such wages or overtime pay) for services rendered;
  2. improper payroll deductions taken by any **Insured** from any **Employee** or purported **Employee**; or
  3. failure to provide or enforce legally required meal or rest break periods;
- M. alleging, arising out of, based upon, or attributable to the employment of any individual or any wrongful employment practice, including, but not limited to, wrongful dismissal, discharge or termination, discrimination, harassment, retaliation or other employment-related claim;
- N. alleging, arising out of, based upon or attributable to:
1. payments, commissions, gratuities, benefits or any other favors to or for the benefit of any full or part-time domestic or foreign governmental or armed services officials, agents, representatives, employees or any members of their family or any entity with which they are affiliated;
  2. payments, commissions, gratuities, benefits or any other favors to or for the benefit of any full or part-time officials, directors, agents, partners, representatives, members, principal

security holders, owners or employees, or affiliates (as defined in the Securities Exchange Act of 1934, including any of their officers, directors, agents, owners, partners, representatives, principal security holders or employees) or any customers of a **Company** or any members of their family or any entity with which they are affiliated; or

3. political contributions, whether domestic or foreign;

O. with respect to Coverage C of this **Coverage Element** only:

1. alleging, arising out of, based upon or attributable to invasion of privacy, plagiarism, misappropriation, infringement or violation of copyright, patent, trademark, trade secret, service mark, trade name or any other intellectual property rights;
2. for any actual or alleged violation of any law, whether statutory, regulatory or common law, as respects the following activities: anti-trust, business competition, unfair trade practices or tortious interference in another's business or contractual relationships;
3. alleging, arising out of, based upon or attributable to any actual or alleged contractual liability of the **Company** or any other **Insured** under any express contract or agreement. This Exclusion shall not apply to liability which would have attached in the absence of such express contract or agreement;
4. alleging, arising out of, based upon or attributable to any product malfunction or failure of any product to perform as a result of any defect, deficiency, inadequacy or dangerous condition in the product or in the design or manufacture of the product;
5. for injury resulting from libel, slander, oral or written publication of defamatory or disparaging material, invasion of privacy, wrongful entry, eviction, false arrest, false imprisonment, malicious prosecution, malicious use or abuse of process, assault, battery or loss of consortium;
6. alleging, arising out of, based upon or attributable to any actual or alleged error, misstatement, misleading statement, act, omission, neglect or breach of duty committed, attempted or allegedly committed or attempted in connection with the rendering of, or actual or alleged failure to render, any professional services for others by any person or entity otherwise entitled to coverage under this **Coverage Element**; or
7. seeking fines, penalties or non-monetary relief against the **Company**. This Exclusion shall not apply to any **Securities Claim**.
8. alleging, arising out of, based upon or attributable to any violation of the Fair Debt Collection Practices Act or the Fair Credit Reporting Act or any Amendments thereto or any rules or regulations promulgated thereunder, or any similar provisions of any federal state, or statutory law or common law anywhere in the world.
9. alleging, arising out of, based upon or attributable to any violation of the United States of America CAN-SPAM Act of 2003 or the United States of America Telephone Consumer Protection Act (TCPA) or 1991 or any rules or regulations promulgated thereunder or any similar provisions of federal, state or local statutory law or common law anywhere in the world or any other law, ordinance, regulation or statute used to impose liability in connection with any unsolicited communication, distribution, publication, sending or transmission via telephone, cell or mobile phone, telephone facsimile machine, computer or other telephonic or electronic devices by or on behalf of or with consent of the **Company**.
10. for the unlawful collection or acquisition of personal information by, or on behalf of, or with the consent or cooperation of any **Insured**.
11. alleging, arising out of, based upon or attributable to any false advertising, misrepresentation in advertising or unfair or deceptive trade practices, with respects to the advertising of the **Insured's** own goods, products, publication or services; provided that this Exclusion shall not Apply to **Loss** on account of any **Securities Claim**.

P. The **Insurer** shall not be liable to make any payment for **Adverse Media Event Loss** in connection with any **Adverse Media Event** under Coverage D or any **Investigation Costs** in connection with any **Derivative Demand** under Coverage E:

1. alleging, arising out of, based upon or attributable to any fact, circumstance, situation, transaction, event or **Wrongful Act** which has been reported under any policy of which this **Coverage Element** is a renewal or replacement or which it may succeed in time;
2. alleging, arising out of, based upon or attributable to any demand, suit or other proceeding pending against, or order, decree or judgment entered by a court of competent jurisdiction, the Continuity Date set forth in Item 5 of the MERIDIAN INDUSTRIES Liability **Coverage Element** Declarations, or **Derivative Demand** which is the same or related to that at issue in any pending or prior demand, suit, proceeding or in the underlying demand, order, decree or judgment;

3. alleging, arising out of, based upon or attributable to any actual, alleged or threatened discharge, dispersal, release or escape of **Pollutants** or any direction or request to test for, monitor, clean up, remove, contain, treat, detoxify or neutralize **Pollutants**; or
4. alleging, arising out of, based upon or attributable to the hazardous properties of nuclear materials.

OLIVER STANHOPE

The following provisions shall apply in addition to the provisions of Section OLIVER STANHOPE of the General Terms and Conditions:

- A. Subject to the Policy Aggregate Limit of Liability set forth in Item 3 of the General Declarations, and except as otherwise provided under Section IV. D of t  
Limit of Liability set forth in Item 3(a) of the CLEARWATER FABRICATION  
Liability **Coverage Element** Declarations  
Insurer's liability for all Loss und  
f the Limit of Liability set forth in Item 3(a) of the CLEARWATER FABRICATION  
CLEARWATER FABRICATION Liability **Coverage Element** Declarations, or the  
f the General Declarations, the Insurer's obligations under this **Coverage Element** shall be deemed completely fulfilled and extinguished, with the exception of Loss under Coverage A of this **Coverage Element** which may be subject to the Additional Executive Limit of Liability pursuant to Section IV. D of this **Coverage Element**.
- B. The maximum limit of the Insurer's liability for all **Adverse Media Event Loss** incurred with respect to **Adverse Media Events** occurring during the **Policy Period**, in the aggreg  
b-Limit of Liability set forth in Item 3(b) of the  
CLEARWATER FABRICATION Liability **Coverage Element** Declarations. The  
ty shall be the maximum limit of the Insurer under this  
**Coverage Element** for all **Adverse Media Event Loss**, regardless of the number of **Adverse Media Events** occurring during the **Policy Period**, and shall be part  
ent Limit of Liability set forth in Item 3(a) of the CLEARWATER FABRICATION  
CLEARWATER FABRICATION Liability **Coverage Element** Declarations which  
Policy Aggregate Limit of Liability set forth in Item 3 of the General  
Declarations.
- C. The maximum limit of the Insurer's liability for all **Investigation Costs** incurred in response to **Derivative Demands** made during the **Policy Period**, in the aggregate,  
ub-Limit of Liability set forth in Item 3(c) of this CLEARWATER FABRICATION  
Liability **Coverage Element** Declarations. Th  
of Liability shall be the maximum limit of the Insurer under this  
**Coverage Element** for all **Investigation Costs** regardless of the number of **Derivative Demands** made during the **Policy Period** or the number of **Executives** subject to such **Derivative Demands** and shall be part  
ent Limit of Liability  
set forth in Item 3(a) of the CLEARWATER FABRICATION Liability **Coverage Element** Declarations which  
Aggregate Policy  
Limit of Liability set forth in Item 3 of the General Declarations.
- D. ent Limit of Liability set forth in Item 3(a) of the CLEARWATER FABRICATION  
Liability **Coverage Element** Declarations is e  
Item 3(d) of the  
Declarations app  
Additional Executive Limit of Liability shall be available solely for Loss under Coverage A of this **Coverage Element** for **Claims** against an **Executive** which were not previously noticed, and not involving the same **Wrongful Act** or **Related Wrongful Acts** as any **Claim** noticed to the Insurer before such exhaustion. Such Additional Executive Limit of Liability shall apply excess of the **Coverage Element** Limit of Liability and any insurance or indemnification available from any source and shall be in addition to and not erode the Policy Aggregate Limit of Liability set forth in Item 3 of the General Declarations. If the Additional Executive Limit of Liability is invoked, then the Insurer's maximum aggregate limit of liability under this  
CLEARWATER FABRICATION tive Limit of Liability set forth in Item 3(d) of the  
Liability **Coverage Element** Declarations and

the Policy Aggregate Limit of Liability set forth in Item 3 of the General Declarations combined.

## V. Retentions

The following provisions shall apply in addition to the provisions of Section V. Retentions of the General Terms and Conditions:

- A. The **Insurer** shall only be liable for the amount of **Loss** applicable Retention set forth in Item 4 of the Liability **Coverage Element** Declarations. The **Insured** shall remain uninsured.
- B. A single Retention shall apply to **Loss** arising from all **Claims** alleging the same **Wrongful Act** or **Related Wrongful Acts**.
- C. The Retention set forth in Item 4(a) of the Liability **Coverage Element** Declarations shall
- t. The Retention set forth in Item 4(b) of the CLEARWATER FABRICATION Liability **Coverage Element** Declarations shall
- ment. The Retention set forth in Item 4(c) of the CLEARWATER FABRICATION Liability **Coverage Element** Declarations shall apply to the Retention set forth in Item 4(d) of this **Coverage Element**.
- D. The Retention set forth in Item 4(d) of the Liability **Coverage Element** Declarations shall apply to each **Claim** other than a **Securities Claim** under Coverage B or Coverage C of this **Coverage Element**. The Retention set forth in Item 4(e) of this **Coverage Element** shall apply to each **Claim** other than a **Securities Claim** under Coverage B or Coverage C of this **Coverage Element**. The Retention applicable to Coverage B shall apply to **Indemnifiable Loss**, whether or not actual indemnification is made, unless such indemnification is not made by a **Company** solely by reason of its **Financial Insolvency**. A **Company's** certificate of incorporation, charter or other organization documents, including by-laws and resolutions, shall be deemed to require indemnification and advancement to an **Individual Insured** to the fullest extent permitted by law.
- E. In the event a **Company** is unable to pay the applicable Retention due to **Financial Insolvency**, then the **Insurer** shall advance payment for **Loss** within the applicable Retention. The **Insurer** shall be entitled to recover the amount of **Loss** advanced within the Retention from such **Company** pursuant to Section VI.C. of this **Coverage Element** and Section X. Subrogation of the General Terms and Conditions.

## VI. Defense Costs, Defense Counsel, Settlements & Judgments

- A. Defense
- The **Insurer** does not assume any duty to defend a **Claim**. The **Insureds** shall defend and contest any **Claim** made against them. An **Insured** shall not retain defense counsel or incur any **Defense Costs** without the prior written consent of the **Insurer**, such consent not to be unreasonably withheld. An **Insured** may select a defense counsel different from that selected by other **Insureds** if such selection is required due to an actual conflict of interest and only with the express prior written consent of the **Insurer**. Notwithstanding the foregoing, and solely with respect to a **Claim** under Coverages A, B and C of this **Coverage Element**, the **Insureds** may at their sole option and pursuant to Section VI.B. of this **Coverage Element** tender to the **Insurer** the defense of any **Claim**. The **Insureds'** option to tender the defense does not apply to the coverage afforded under Coverage D or Coverage E of this **Coverage Element**, and it shall remain the duty of the **Company** and not the duty of the **Insurer** to respond to, investigate or otherwise evaluate any **Adverse Media Event** or **Derivative Demand**. The **Insurer** shall be entitled to effectively associate with the **Company** in its response, investigation, evaluation, negotiation or settlement of any such **Adverse Media Event** or **Derivative Demand**.

B. **Insured's Option to Tender Defense**

The **Insureds** shall have the right to tender the defense of a **Claim** under Coverages A, B and C of this **Coverage Element** to the **Insurer**, which right shall be exercised in writing by the **Named Insured** on behalf of all **Insureds** to the **Insurer** pursuant to the notice provisions of Section VI. of the General Terms and Conditions. This right shall terminate if not exercised within thirty (30) days of the date the **Claim** is reported in accordance with Section VI. Reporting and Notice of the General Terms and Conditions. Further, from the date the **Claim** is first made against an **Insured** to the date when the **Insurer** accepts the tender of the defense of such **Claim**, the **Insureds** shall take no action, or fail to take any required action, that prejudices the rights of any **Insured** or the **Insurer** with respect to such **Claim**. Provided that the **Insureds** have complied with the foregoing, the **Insurer** shall be obligated to assume the defense of the **Claim**, even if such **Claim** is groundless, false or fraudulent. The assumption of the defense of the **Claim** shall be effective upon written confirmation sent thereof by the **Insurer** to the **Named Insured**. Once the defense has been so tendered, the **Insured** shall have the right to effectively associate with the **Insurer** in the defense and the negotiation of any settlement of any **Claim**, subject to the provisions of Section VII. of this **Coverage Element**. In the event the **Insurer** accepts the tender of defense of such **Claim**, the **Insurer** shall be responsible for the retention of defense counsel for such **Claim**.

C. **Advancement**

Regardless of whether the defense is so tendered, the **Insurer** shall advance **Defense Costs** in excess of the applicable Retention on behalf of the **Insured** prior to final disposition of the **Claim**. Such advanced payments by the **Insurer** shall be repaid to the **Insurer** by each and every **Insured**, severally according to their respective interests, in the event and to the extent that any such **Insured** shall not be entitled under the Terms and Conditions of this **Coverage Element** to payment of such **Loss**.

D. **General Provisions**

The **Insurer** shall have the right to associate fully and effectively with each and every **Insured** in the defense of any **Claim** that appears reasonably likely to involve the **Insurer**, including, but not limited to, negotiating a settlement. Each and every **Insured** agrees to provide such information as the **Insurer** may reasonably require and to give the **Insurer** full cooperation and take such actions which, in such **Insurer's** judgment, are deemed necessary and practicable to prevent or limit **Loss** arising from any **Wrongful Act**.

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shall not admit or assume any liability, enter into any settlement agreement, stipulate to any judgment, incur any **Defense Costs**, **Adverse Media Event Loss** or **Investigation Costs**, or retain a risk management, public relations or law firm, without the prior written consent of the **Insurer**. If the **Insured** admits or assumes any liability in connection with any **Claim** without the consent of the **Insurer**, then the **Insurer** shall not have any obligation to pay **Loss** with respect to such **Claim**. Only those settlements, stipulated judgments, **Defense Costs**, **Adverse Media Event Loss** and **Investigation Costs** which have been consented to by the **Insurer** shall be recoverable as **Loss** under the terms of this **Coverage Element**. The **Insurer** shall not unreasonably withhold any consent required under this **Coverage Element**, provided that in all events the **Insurer** may withhold consent to any settlement, stipulated judgment or **Defense Costs**, or any portion thereof, to the extent such **Claim** (or any portion thereof) is not covered under the terms of this **Coverage Element**. In addition, the **Insured** shall not take any action which prejudices the **Insurer's** rights under this **Coverage Element**.

When the **Insurer** has assumed the defense of a **Claim** and if the **Insureds** do not consent to the first **Settlement Opportunity** within 30 days of the date the **Insureds** are first made aware of such **Settlement Opportunity** (or in the case of a **Settlement Opportunity** which arises from a settlement offer by the claimant, then within the time permitted by the claimant to accept such settlement offer, but in all events no later than 30 days after the settlement offer was made), then, subject to all applicable Limits of Liability, the **Insurer's** liability for all **Loss** on account of such **Claim** shall not exceed:

1. the amount for which the **Insurer** could have settled such **Claim** plus **Defense Costs** incurred as of the date such settlement was proposed in writing by the **Insurer** ("**Settlement Opportunity Amount**"), plus

2. 80% of covered **Loss** in excess of such **Settlement Opportunity** Amount, it being a condition of this insurance that the remaining 20% of such covered **Loss** excess of such **Settlement Opportunity** Amount shall be carried by the **Insureds** at their own risk and be uninsured.

Notwithstanding the foregoing, this paragraph shall not apply until such **S**  
applicable Retention set forth in Item 4 of the **Liability Coverage Element** Declarations or  
assumed the defense

## VII. Other Insurance

Such insurance as is provided by this **Coverage Element** shall apply only as excess over any other valid and collectible insurance, unless such other insurance is expressly written to be excess over any applicable Limit of Liability for this policy or any **Coverage Element**. This policy specifically shall be excess of any other policy pursuant to which any other insurer has a duty to defend a **Claim** for which this policy may be obligated to pay **Loss**. For any **Claim** involving an **Outside Entity Executive**, this policy shall be specifically excess of any indemnification by the **Outside Entity** and any insurance coverage afforded to any such **Outside Entity Executive** or **Outside Entity**.

## VIII. Allocation

If both **Loss** covered under this **Coverage Element** and loss not covered under this **Coverage Element** are incurred by the **Insureds** on account of any **Claim** because such **Claim** against the **Insureds** includes both covered and non-covered matters, then coverage under this **Coverage Element** with respect to such **Claim** shall apply as follows:

1. **Defense Costs**: 100% of **Defense Costs** incurred by the **Insured** or the **Insurer** on account of such **Claim** will be considered covered **Loss**; and
2. **Loss** other than **Defense Costs**: All remaining amounts incurred by the **Insured** on account of such **Claim** shall be allocated by the **Insurer** pro rata between covered **Loss** and non-covered **Loss** based on the legal liability and financial exposures of the **Insureds** to covered and non-covered matters and, in the event of a settlement in such **Claim**, also based on the number of covered and non-covered counts, causes of action or allegations against the **Insureds**.

Provided the foregoing shall not apply with respects to any **Insured** for whom coverage is excluded pursuant to Exclusion O. Such **Loss** shall be allocated by the **Insurer** pro rata between covered **Loss** and non-covered loss based on the legal liability and financial exposures of the **Insureds** to covered and non-covered matters and covered and non-covered parties, in the event of a settlement in such **Claim**, also based on the number of covered and non-covered counts, causes of action or allegations against the **Insureds**.

If the **Insureds** and the **Insurer** cannot agree on an allocation of covered **Loss** and non-covered loss:

- A. no presumption as to allocation shall exist in any arbitration, suit or other proceeding; and
- B. the **Insurer**, if requested by the **Insureds**, shall submit the dispute to binding arbitration. The rules of the American Arbitration Association shall apply except with respect to the selection of the arbitration panel, which shall consist of one arbitrator selected by the **Insureds**, one arbitrator selected by the **Insurer**, and a third independent arbitrator selected by the first two arbitrators.

## IX. Coverage under Coverage D and Coverage E

It is understood and agreed that the **Company** shall be entitled to payment:

- A. under Coverage D of this **Coverage Element** for **Adverse Media Event Loss** not greater than 90 days after receiving written consent of the **Insurer**; and
- B. under Coverage E of this **Coverage Element** for **Investigation Costs** not greater than 90 days after the **Company** has made its final decision not to bring a civil proceeding in a court of law against any of its **Executives**, and such decision has been communicated to the security holders who made the demand upon the **Company**. However, such payment shall be subject to an undertaking by the **Company**, in a form acceptable to the **Insurer**, that the **Company** shall return to the **Insurer** such payment in the event any **Company** or any security holder of the **Company** brings a **Claim** alleging, arising out of, based upon or attributable to any **Wrongful Acts** which were the subject of the demand.

Nothing in this **Coverage Element**, including Coverage E, shall be construed to afford coverage for any **Claim** brought by the **Company** against one or more of its own **Executives**, other than **Investigation Costs** incurred in a covered **Derivative Demand** or as otherwise provided under Section III.F. of this **Coverage Element**.

## X. Order of Payments

In the event of **Loss** arising from any **Claim** for which payment is due under the provisions of this **Coverage Element** but which **Loss**, in the aggregate, exceeds the remaining available Limits of Liability applicable to this **Coverage Element**, (including by virtue of the depletion of the Policy Aggregate Limit of Liability), then the **Insurer** shall:

- A. first pay such **Loss** for which coverage is provided under Coverage A of this **Coverage Element**;
- B. then pay such **Loss** for which coverage is provided under Coverage B of this **Coverage Element**; and
- C. then pay such other **Loss** for which coverage is provided under this policy.

Upon the written request of the **Named Insured**, the **Insurer** shall either pay or withhold payment for **Loss** otherwise payable under Coverages B, C, D or E. In the event that the **Insurer** withholds payment as requested by the **Named Insured**, then the **Insurer** shall at any time in the future, at the request of the **Named Insured**, release such **Loss** payment to a **Company**, or make such **Loss** payment directly to the **Individual Insured** in the event of any **Claim** under Coverage A of this **Coverage Element**. The **Insurer's** liability with respect to any payments of **Loss** withheld shall not be increased, and shall not include any interest, as a result of such withholding.

The **Financial Insolvency** of any **Company** or any **Individual Insured** shall not relieve the **Insurer** of any of its obligations to prioritize payment of covered **Loss** under this **Coverage Element** pursuant to this Section X.

## ELEMENTS SCHEDULE

### Coverage Elements and Endorsements:

|               |                              |                            |
|---------------|------------------------------|----------------------------|
| PL-DEC-GTC-CW | Elements General Dec         |                            |
| PL99G100      | General Terms and Conditions |                            |
| PL-DEC-DP-CE  | Elements Private D&O Dec     |                            |
| PL99V187      | CLEARWATER FABRICATION       | Liability Coverage Element |

### Endorsements:

|                    |                                                      |
|--------------------|------------------------------------------------------|
| 1. PBJV0090 0820   | Cyber Exclusion (Broad)                              |
| 2. PBJV0056NA 0515 | Amend Insured vs Insured - Past Executive - 2 Years  |
| 3. PBJG0227 0822   | Specific Matter Exclusion                            |
| 4. PBJV0055NA 0515 | Broad Form Contract Exclusion                        |
| 5. PBJG0129NA 0615 | Employed Lawyers Coverage Endorsement                |
| 6. PBJG0148 0516   | Elements Enhancement Endorsement VDO                 |
| 7. PBJG0089NA 0114 | Amended Extended Reporting Period – Multiple Options |
| 8. PBJG0096NA 0214 | Amended Reporting and Notice (Top Executives)        |
| 9. PBJG0260 0325   | Amend Cancellation Notice - Pro Rata                 |
| 10. PBJG0257 1024  | Amend Extended Reporting Period Requirement          |
| 11. PL99G124 1112  | Amended Definition of Subsidiary                     |
| 12. PL99G114 1112  | Reliance Endorsement                                 |

**ENDORSEMENT NUMBER**  
**NAMED INSURED**  
**POLICY NUMBER**  
**EFFECTIVE DATE**

1  
Ridgeway Mechanical  
EUW8895725 51  
June 23, 2026

This endorsement modifies only the selected COVERAGE ELEMENTS(s) as indicated by an "X" below, and if applicable, the GENERAL TERMS AND CONDITIONS as they apply to the COVERAGE ELEMENT(s) indicated by an "X" below

|                                     |                                                 |                  |
|-------------------------------------|-------------------------------------------------|------------------|
| <input type="checkbox"/>            | IRONVALE AUTOMOTIVE SERVICES                    | COVERAGE ELEMENT |
| <input checked="" type="checkbox"/> | MERIDIAN INDUSTRIES                             | COVERAGE ELEMENT |
| <input type="checkbox"/>            | NOT GRANITE ROW MECHANICAL                      | COVERAGE ELEMENT |
| <input type="checkbox"/>            | EMPLOYMENT PRACTICES LIABILITY COVERAGE ELEMENT |                  |
| <input type="checkbox"/>            | FIDUCIARY COVERAGE ELEMENT                      |                  |

## CYBER EXCLUSION (BROAD)

It is agreed:

1. Section III. Exclusions in the MERIDIAN INDUSTRIES **Coverage Element**, is amended by adding the following:

alleging, arising out of, based upon or attributable to:

- (1) theft, loss, disclosure, collection, storage, retention, inability to access, alteration or corruption of, or use or misuse of any **Protected Information**;
- (2) failure to report, respond to or disclose the theft, loss, disclosure, collection, storage, retention, inability to access, alteration or corruption of, or use or misuse of any **Protected Information**;
- (3) violation of any federal, state, local or foreign statute, law, rule, or regulation (as amended) governing the correction, collection, protection, retention, handling, control, disposal, processing, disclosure, sharing, sale, maintenance, acquisition, storage, access to, use or misuse of any **Protected Information**;
- (4) interruption, outage, inability to access, compromise of, or corruption of **Computer Systems** or any data residing thereon;
- (5) trading losses, trading liabilities or change in value of accounts; or
- (6) loss, transfer or theft of monies, securities or tangible property to, from, or in the care, custody or control of, the **Insured**.

2. Section II. Definitions is amended by adding the following:

**"Computer System"** means any computer hardware, software, any components thereof, or other associated devices or equipment (including, but not limited to wireless and mobile devices), and are owned, operated, controlled, or leased by or on behalf of (i) the **Insured**, (ii) any third party from which the **Insured** receives services or products, (iii) any third party to which the **Insured** provides services or products, or (iv) any third party with which the **Insured**

GRANITE ROW MECHANICAL

**"Protected Information"** means any information of others in an **Insured's** or a **Data Holder's** care, custody or control or for which an **Insured** or **Data Holder** is legally responsible, including, but not limited to:

- (1) any non-public information that is protected under the **Insured's** publicly available privacy policy (as amended);
- (2) information from which an individual may be uniquely and reliably identified or contacted, or which allows access to an individual's financial, medical, or other records or accounts, including, but not limited to an individual's name, address, telephone number, social security number, account relationships, account numbers, account balances, account histories, usernames, authentication information, security information, passwords, or biometric information;
- (3) any information about an individual that is not publicly available, including, but not limited to videos, photographs, internet browsing history, customer proprietary network information (CPNI), and geolocation information;
- (4) any information concerning an individual that is protected pursuant to any federal, state, local or foreign statute, law, rule, or regulation (as amended) intended to govern the correction, collection, retention, handling, control, disposal, processing, disclosure, sharing, sale, maintenance, acquisition, storage, access to, or use or misuse of personal, financial, medical or other sensitive information, including, but not limited to:
  - (i) Insurance Portability and Accountability Act of 1996 (as amended) (HIPAA) or the Health Information Technology for Economic and Clinical Health Act (HITECH Act) and their implementing regulations, or protected health-related information under any similar federal, state, local or foreign law;
  - (ii) the Gramm-Leach Bliley Act of 1999 and its implementing regulations, or protected personal information under any similar federal, state, local or foreign statute, law or regulation;
  - (iii) the California Security Breach Notification Act (CA SB 1386) and Massachusetts 201 CMR 17;
  - (iv) the Identity Theft Red Flags under the Fair and Accurate Credit Transactions Act of 2003;
  - (v) Fair Credit Reporting Act;
  - (vi) section 5(a) of the Federal Trade Commission Act, 15 U.S.C. § 45(a), but solely for alleged violations of unfair or deceptive acts or practices in or affecting commerce;
  - (vii) the Data Protection Act of 1998 or similar legislation to comply with the European Union Data Protection Directive 95/46/EC of 1995; or by the European Union General Data Protection Regulation (GDPR).
  - (viii) New York Cybersecurity Regulation (23 NYCRR Part 500);

- (ix) the California Consumer Privacy Act of 2018;
  - (x) the Biometric Information Privacy Act; or
  - (xi) other federal, state, local or foreign statutes, laws, rules, or regulations similar to those described above;
- (5) any information that is not publicly available, and which is held under an obligation, agreement, or understanding of confidentiality; or
- (6) intellectual property including, but not limited to patents, trade secrets, data, designs, interpretations, forecasts, formulas, methods, practices, processes, records, reports, ideas, expressions of ideas, or other item of information that is not available to the general public.

"**Data Holder**" means a third party:

- (1) to which the **Insured** has provided **Protected Information**; or
- (2) that has received **Protected Information** on behalf of the **Insured**.

All other terms, conditions and exclusions under the policy are applicable to this endorsement and remain unchanged.

**ENDORSEMENT NUMBER**  
**NAMED INSURED**  
**POLICY NUMBER**  
**EFFECTIVE DATE**

2  
Ridgeway Mechanical  
EUW8895725 51  
June 23, 2026

This endorsement modifies only the selected COVERAGE ELEMENTS(s) as indicated by an "X" below, and if applicable, the GENERAL TERMS AND CONDITIONS as they apply to the COVERAGE ELEMENT(s) indicated by an "X" below

|                                     |                                                 |                  |
|-------------------------------------|-------------------------------------------------|------------------|
| <input type="checkbox"/>            | IRONVALE AUTOMOTIVE SERVICES                    | COVERAGE ELEMENT |
| <input checked="" type="checkbox"/> | MERIDIAN INDUSTRIES                             | COVERAGE ELEMENT |
| <input type="checkbox"/>            | EMPLOYMENT PRACTICES LIABILITY COVERAGE ELEMENT |                  |
| <input type="checkbox"/>            | FIDUCIARY COVERAGE ELEMENT                      |                  |

## AMEND INSURED VS. INSURED – PAST EXECUTIVE – 2

MERIDIAN

It is agreed Section III. Exclusions F. 3. Is deleted in its entirety and replaced with the following

3. any **Claim** brought by any past **Executive** of a **Company** provided that he or she has not served as an **Executive**, General Counsel, Risk Manager or consultant of a **Company** at any time during the two <sup>MERIDIAN</sup> prior to the **Claim** being first made against any **Insured** and provided it is brought without the solicitation, assistance, active participation or intervention of any current **Executive** of a **Company** or anyone who has served in such capacity during the two <sup>MERIDIAN</sup> prior to the **Claim** being first made;

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**POLICY NUMBER**  
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This endorsement modifies only the selected **COVERAGE ELEMENT(s)** as indicated by an "X" below, and if applicable, the GENERAL TERMS AND CONDITIONS as they apply to the **COVERAGE ELEMENT(s)** indicated by an "X" below.

- |                                                                                                            |                            |
|------------------------------------------------------------------------------------------------------------|----------------------------|
| <input type="checkbox"/> IRONVALE AUTOMOTIVE SERVICES                                                      | LIABILITY COVERAGE ELEMENT |
| <input checked="" type="checkbox"/> MERIDIAN INDUSTRIES                                                    | LIABILITY COVERAGE ELEMENT |
| <input type="checkbox"/> EMPLOYMENT PRACTICES LIABILITY COVERAGE ELEMENT                                   |                            |
| <input type="checkbox"/> FIDUCIARY LIABILITY COVERAGE ELEMENT                                              |                            |
| <input type="checkbox"/> NOT FOR PROFIT DIRECTORS AND OFFICERS AND ORGANIZATION LIABILITY COVERAGE ELEMENT |                            |

## SPECIFIC MATTER EXCLUSION

The Insurer shall not be liable to make any payment for **Loss** in connection with any **Claim**, including defense thereof, made against any **Insured** which in whole or in part alleges, arises out of, or is based upon or attributable to:

advance to music enterprises

including but not limited to any **Wrongful Act** or **Related Wrongful Acts**, facts, or circumstances, which have as a common nexus any acts, facts, or circumstances related to such.

**ENDORSEMENT NUMBER**  
**NAMED INSURED**  
**POLICY NUMBER**  
**EFFECTIVE DATE**

4  
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This endorsement modifies only the selected COVERAGE ELEMENTS(s) as indicated by an "X" below, and if applicable, the GENERAL TERMS AND CONDITIONS as they apply to the COVERAGE ELEMENT(s) indicated by an "X" below

☐ IRONVALE AUTOMOTIVE SERVICES  
☒ MERIDIAN INDUSTRIES  
☐ EPL COVERAGE ELEMENT  
☐ FIDUCIARY COVERAGE ELEMENT

COVERAGE ELEMENT  
COVERAGE ELEMENT

## BROAD FORM CONTRACT EXCLUSION

In consideration of the premium charged, it is understood and agreed that Exclusion O. 3. in Section III. Exclusions in the MERIDIAN INDUSTRIES **Coverage Element**, is amended

- a. to apply to all Insuring Agreements in the MERIDIAN INDUSTRIES **Coverage Element**, and
- b. To read;

alleging, arising out of, based upon or attributable to any actual or alleged contractual liability of the **Company** or any other **Insured** under any express contract or agreement. This Exclusion shall not apply to liability which would have attached in the absence of such express contract or agreement;

**ENDORSEMENT NUMBER**  
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**POLICY NUMBER**  
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This endorsement modifies only the selected **COVERAGE ELEMENT** (s) as indicated by an "X" below, and if applicable, the GENERAL TERMS AND CONDITIONS as they apply to the **COVERAGE ELEMENT**(s) indicated by an "X" below.

- |                                                                                                            |                            |
|------------------------------------------------------------------------------------------------------------|----------------------------|
| <input type="checkbox"/> IRONVALE AUTOMOTIVE SERVICES                                                      | LIABILITY COVERAGE ELEMENT |
| <input checked="" type="checkbox"/> MERIDIAN INDUSTRIES                                                    | LIABILITY COVERAGE ELEMENT |
| <input type="checkbox"/> EMPLOYMENT PRACTICES LIABILITY COVERAGE ELEMENT                                   |                            |
| <input type="checkbox"/> FIDUCIARY LIABILITY COVERAGE ELEMENT                                              |                            |
| <input type="checkbox"/> NOT FOR PROFIT DIRECTORS AND OFFICERS AND ORGANIZATION LIABILITY COVERAGE ELEMENT |                            |

## EMPLOYED LAWYERS COVERAGE ENDORSEMENT

Section II. Definitions, **Employee** is amended to include any **Employed Lawyer** of the **Company**, but only for **Employed Lawyers Wrongful Acts**.

Section II. Definitions, **Wrongful Act** is amended to include any **Employed Lawyers Wrongful Act**.

For purposes of this endorsement, the following terms whenever set forth in boldface type, whether singular or in plural, shall have the meanings indicated:

1. **Employed Lawyer** means any person admitted to practice law who is employed full time by the **Company** for the purposes of providing **Legal Services** to the **Company**.
2. **Employed Lawyers Wrongful Act** means any actual or alleged act, error, omission, neglect or breach of duty committed by an **Employed Lawyer** in the performance of, or failure to perform, **Legal Services**.
3. **Legal Services** means legal services provided by an **Employed Lawyer**, but only if such services are performed for the **Company** in the **Employed Lawyer's** capacity as an **Employee** of such **Company**.

Section III. Exclusions is amended to add the following:

The **Insurer** shall not be liable to make any payment for **Loss** in connection with any **Claim** made against any **Insured**:

1. based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any **Employed Lawyers Wrongful Act** committed or allegedly committed at any time when the **Employed Lawyer** was not employed by the **Company** for the purpose of providing **Legal Services**;

2. based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any prior/pending litigation or administrative, regulatory or arbitration proceeding against any **Employed Lawyer** as of June 23, 2026, or the same or substantially the same fact, circumstance, situation, transaction, event or **Wrongful Act** underlying or alleged therein;
3. based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any **Employed Lawyers Wrongful Act**, if, as of June 23, 2026, any **Employed Lawyer** knew or could have reasonably foreseen that such **Employed Lawyers Wrongful Act** could give rise to a **Claim**; or
4. based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any act, error, or omission in connection with any activities by an **Employed Lawyer**:
  - i. as an officer or director of any entity, other than the **Company**;
  - ii. which are not related to such **Employed Lawyer's** employment with the **Company**;
  - iii. which are not rendered on behalf of the **Company** at the **Company's** written request; or
  - iv. which are performed by the **Employed Lawyer** for others for a fee.

The maximum Limit of Liability under the **Coverage Element** identified above for all **Loss** resulting from all **Claims** for **Employed Lawyers Wrongful Acts** shall be \$1,000,000 , which amount shall be part of, and not in addition to, the Policy Aggregate Limit of Liability and any Separate Limit of Liability or Shared Limit of Liability applicable to the **Coverage Element** identified above.

The coverage afforded by this endorsement shall apply only to any **Claim** that is also made and continuously maintained against at least one **Insured**, other than any **Employed Lawyer**.

**ENDORSEMENT NUMBER**  
**NAMED INSURED**  
**POLICY NUMBER**  
**EFFECTIVE DATE**

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EUW8895725 51  
June 23, 2026

This endorsement modifies only the selected COVERAGE ELEMENTS(s) as indicated by an "X" below, and if applicable, the GENERAL TERMS AND CONDITIONS as they apply to the COVERAGE ELEMENT(s) indicated by an "X" below

|                                     |                                                 |                  |
|-------------------------------------|-------------------------------------------------|------------------|
| <input type="checkbox"/>            | IRONVALE AUTOMOTIVE SERVICES                    | COVERAGE ELEMENT |
| <input checked="" type="checkbox"/> | MERIDIAN INDUSTRIES                             | COVERAGE ELEMENT |
| <input type="checkbox"/>            | EMPLOYMENT PRACTICES LIABILITY COVERAGE ELEMENT |                  |
| <input type="checkbox"/>            | FIDUCIARY COVERAGE ELEMENT                      |                  |
| <input type="checkbox"/>            | NOT GRANITE ROW MECHANICAL                      | COVERAGE ELEMENT |

## ELEMENTS ENHANCEMENT ENDORSEMENT – MERIDIAN INDUSTRIES

### COVERAGE ELEMENT

It is agreed:

#### AMENDMENTS TO GENERAL TERMS AND CONDITIONS

1. Section III SPOUSES ESTATES of the General Terms and Conditions is amended to read:

Subject otherwise to the terms, conditions and limitations of this policy, this policy provides coverage for any **Claim** solely for **Wrongful Acts** committed or allegedly committed by the **Individual Insureds** made against:

- (i) estates, heirs, or legal representatives of any deceased **Individual Insureds**, including a trust or estate planning vehicle of an **Individual Insureds**, or the legal representatives of any **Individual Insureds** in the event of incompetence, insolvency or bankruptcy, and who was an **Individual Insureds** at the time the **Wrongful Acts** upon which such **Claim** is based were alleged to have been committed in the event of their incompetency, insolvency or bankruptcy; or
- (ii) the lawful spouse or legally recognized **Domestic Partner** (whether such status is derived by reason of statutory law, common law or otherwise of any applicable jurisdiction in the world and hereinafter included in the term "spouse") of any such **Individual Insured** for all **Claims** arising solely out of his or her status as spouse of an **Individual Insured**, including a **Claim** that seeks damages recoverable from marital community property, property jointly held by the **Individual Insured** and the spouse, or property transferred from the **Individual Insured** to the spouse.

2. Section X SUBROGATION of the General Terms and Conditions is amended to read:

In the event of any payment under this policy, the **Insurer** shall be subrogated to the extent of such payment to all the **Insureds'** rights of recovery thereof, and the **Insureds** shall execute all papers required and shall do everything that may be necessary to secure such rights, including the execution of such documents necessary to enable the **Insurer** to bring suit effectively in the name of any **Insured**. In no event, however, shall the **Insurer** exercise its rights of subrogation against an **Individual Insured** or against any current or former direct or indirect shareholder of the **Named Insured** or any affiliate or control person of any such shareholder under this policy unless such **Individual Insured** or current or former direct or indirect shareholder of the **Named Insured** or any affiliate or control person of any such shareholder has been convicted of a criminal act or been determined by a final un-appealable adjudication in the underlying action to have committed a dishonest or fraudulent act or to have obtained any personal profit or financial advantage to which such **Individual Insured** was not legally entitled.

In the event that the **Insurer** shall for any reason pay **Indemnifiable Loss** on behalf of an **Individual Insured**, the **Insurer's** subrogation rights shall include, but not be limited to, the assertion of indemnification or contribution rights with respect to any such payments it makes or advances. Additionally, upon the **Insurer** making any payment of **Loss** within the applicable Retention, the **Insurer** shall have a direct contractual right under this policy to recover from the **Company**, or in the event of the bankruptcy of the **Company**, from the debtor-in-possession (or equivalent status outside the United States), such **Loss** which was paid within the Retention. Such direct contractual right of recovery against the **Company** shall be in addition to and independent of the **Insurer's** subrogation right pursuant to this Section X. and any other rights the **Insurer** may have under applicable law.

In the event the **Insurer** recovers amounts it paid under this policy, the **Insurer** will reinstate the exhausted portion of the Limits of Liability of this policy to the extent of such recovery, less its costs incurred in administering and obtaining such recovery.

3. Section XI REPRESENTATIONS AND SEVERABILITY of the General Terms and Conditions is amended to read:

In granting coverage under this policy, it is agreed that the **Insurer** has relied upon the statements and representations contained in the **Application** for this policy as being accurate and complete. All such statements and representations are the basis of this policy and are to be considered as incorporated into this policy.

In the event that the particulars and statements contained in the **Application** are not accurate and complete and materially affect either the acceptance of the risk or the hazard assumed by the **Insurer** under any individual **Coverage Element** then that respective **Coverage Element** and only that **Coverage Element** shall be void *ab initio* as to any **Insured** who knew as of the inception date of the **Policy Period** of the facts that were not accurately and completely disclosed in the **Application** and who with the intent to deceive, disclosed such facts, or withheld their knowledge that such facts were not complete. Solely for purposes of determining whether this policy shall be void *ab initio* as to an **Insured**, such aforesaid knowledge possessed by any **Insured** shall not be

imputed to any other **Individual Insured** and only the knowledge possessed by any past, present or future Chairman, chief executive officer or chief financial officer of a **Company** shall be imputed to such **Company**.

The **Application** shall be construed as a separate application for coverage by each **Individual Insured**.

ASHCROFT MOTORWORKS  
ELEMENT

LIABILITY COVERAGE

4. The **Insurer** shall not be entitled to rescind the coverage under Insuring Agreement **Coverage A: Individual Insurance Coverage**, except for non-payment of premium.

5. Item II. DEFINITIONS C. **Claim** is amended by deleting subparagraph and replacing it with the following:

4 a formal request for the extradition of an **Individual Insured** in any country by another country for trial or to answer a criminal accusation, including the execution of a warrant for the arrest of an **Individual Insured** where such execution is an element of the extradition.

6. Section II DEFINITIONS D. in the Liability  
**Coverage Element** is amended to read:

D. **Defense Costs** means reasonable fees, costs and expenses consented to by the **Insurer** (including premiums for any appeal bond, attachment and or similar bond arising out of a covered judgment, but without any obligation to apply for or furnish any such bond), resulting solely from the investigation, adjustment, defense and appeal of a **Claim** against an **Insured**, but excluding compensation of any **Individual Insured**. **Defense Costs** shall not include any fees, costs or expenses incurred prior to

IRONVALE AUTOMOTIVE SERVICES

7. Section II. DEFINITIONS G. **Executive** in the CLEARWATER FABRICATION  
Liability **Coverage Element** is amended to include any past, present or future duly elected or appointed Advisory Board members, Audit Committee members, Supervisory Board members, Board Representatives and/or Board Observers

8. Section II DEFINITIONS, K. in the Liability  
**Coverage Element**, **Loss** is amended to read:

K. **Loss** means

1. the amount that any Insured becomes legally obligated to pay in connection with any covered **Claim**, including, but not limited to:
  - (i) judgments (including pre-judgment and post-judgment interest on any covered portion thereof) and settlements; and
  - (ii) damages, including punitive or exemplary damages and the multiple portion of multiplied damages relating to punitive or exemplary damages. The enforceability of this subparagraph (ii) shall be governed by such applicable law that most favors coverage for such punitive, exemplary and multiple damages;
  - (iii) that portion of any settlement which represents claimant's attorneys' fees as so ordered as part of any such settlement

(iv) taxes and related penalties and interest assessed against a director based upon, arising out of or attributable to the failure to deduct, withhold or remit tax from a payment of salary or wages of an employee pursuant to the Income Tax Act R.S.C. 1985 (5th Supp.), the Employment Insurance Act, S.C. 1996, c. 23, and the Canada Pension Plan, R.S.C. c. C-8, the regulations promulgated thereunder and amendments thereto or any similar provisions of any provincial law; or

(v) unpaid tax liabilities of the Company arising under the laws of Canada, the laws of any province of Canada, or any municipality therein, which the Company is unable to pay due to Financial Insolvency and which Directors become legally obligated to pay.

2. **Defense Costs;**

3. with respect to Coverage D of this **Coverage Element, Adverse Media Event Loss;** and

4. with respect to Coverage E of this **Coverage Element, Investigation Costs.**

9. Subsection 3. **Loss** shall not include, other than **Defense Costs:** of Definition K. **Loss** in Section II. Definitions is amended by adding the following: 7. civil or criminal fines or penalties; provided however this does not include civil penalties assessed against any Individual Insured pursuant to Section 2(g)(2)(B) of the Foreign Corrupt Practices Act, 15 U.S.C. § 78dd-2(g)(2)(B) subject to the other terms and conditions of this policy;

10. Section II DEFINITIONS, R. in the **Coverage Element, Wrongful Act** is mended to read:

Liability

R. **Wrongful Act** means

1. any actual or alleged breach of duty, neglect, error, misstatement, misleading statement, omission or act by an **Individual Insured** in their respective capacities as such, or any matter claimed against such **Individual Insured** GRANITE ROW INDUSTRIES **Employee, or Outside Entity Executive;** or
2. any actual or alleged breach of duty, neglect, error, misstatement, misleading statement, omission or act by a **Company.**

11. Section III EXCLUSIONS A. of the CLEARWATER FABRICATION **Coverage Element** is deleted in its entirety and replaced with the following:

Liability

A. alleging, arising out of, based upon or attributable to:

1. gaining of any personal profit, remuneration or financial advantage to which the **Insured** was not legally entitled, as established in any final non-appealable ASHCROFT HOLDINGS
2. purchase or sale by an **Insured** of securities of the **Company** within the meaning of Section 16(b) of the Securities Exchange Act of 1934 and amendments thereto or similar provisions of any state statutory law, if any final non-appealable adjudication in the underlying action establishes that such Section 16(b) violation occurred;
3. payment to any **Insured** of any remuneration without the previous approval of the security holders of the **Company**, if any final non-appealable adjudication in the underlying action establishes such payment was illegal; or

4. committing of any deliberate criminal or deliberate fraudulent act, or any willful violation of any statute, rule or law, if any final non-appealable adjudication in the underlying action establishes that such deliberate criminal or deliberate fraudulent act, or willful violation of statute, rule or law was committed.

For purposes of determining the applicability of this Exclusion, (i) the facts pertaining to and knowledge possessed by any **Insured** shall not be imputed to any **Individual Insured**; and (ii) only facts pertaining to and knowledge possessed by any past, present or future chairman, chief executive officer or chief financial officer (or equivalent positions) of a **Company** or the signatory of the **Application** shall be imputed to such **Company**;

12. Section III EXCLUSIONS C. in the CLEARWATER FABRICATION  
**Coverage Element** is amended to read:

Liability

- C. alleging, arising out of, based upon or attributable to any demand, suit or other CLEARWATER MOTORWORKS  
any **Insured** on or prior to the Continuity Date set forth in Item 5 of the CLEARWATER FABRICATION  
CLEARWATER FABRICATION Liability **Coverage Element** Declarations, which would  
otherwise be covered by the terms and conditions of the CLEARWATER FABRICATION  
CLEARWATER FABRICATION Liability **Coverage Element** or the alleging of any **Wrongful Act**  
which is the same as or a **Related Wrongful Act** to that alleged in such pending or  
prior demand, suit or proceeding or in the underlying demand, order, decree or  
judgment;

13. Section III. EXCLUSIONS F. 2. is deleted in its entirety and replaced with the following:

2. any **Claim** brought by the examiner, trustee, receiver, liquidator, rehabilitator or member of a creditors committee (or any assignee thereof) of such **Company** or **Outside Entity** in any bankruptcy proceeding by or against such **Company** or **Outside Entity**;

14. Section III. EXCLUSIONS F. 3. is deleted in its entirety and replaced with the following

3. any **Claim** brought by any past **Executive** of a **Company** provided that he or she has not served as an **Executive**, General Counsel, Risk Manager or consultant of a **Company** at any time during the two years prior to the **Claim** being first made against any **Insured** and provided it is brought without the solicitation, assistance, active participation or intervention of any current **Executive** of a **Company** or anyone who has served in such capacity during the two years prior to the **Claim** being first made

15. Section III. J. EXCLUSIONS does not apply to the coverage afforded by **Coverage A: Individual Insurance Coverage**.

16. Section VI. DEFENSE COSTS, DEFENSE COUNSEL, SETTLEMENTS & JUDGMENTS C. ADVANCEMENT of the  
Liability **Coverage Element** is deleted and replaced with the following:

- C. Advancement

Regardless of whether the defense is so tendered, the **Insurer** shall advance **Defense Costs** in excess of the applicable Retention on behalf of the **Insured** not less often than every 90 days and prior to final disposition of the **Claim**. Such advanced payments by the **Insurer** shall be repaid to the **Insurer** by each and

every **Insured**, severally according to their respective interests, in the event and to the extent that any such **Insured** shall not be entitled under the Terms and Conditions of this **Coverage Element** to payment of such **Loss**.

17. Section VI. DEFENSE COSTS, DEFENSE COUNSEL, SETTLEMENTS & JUDGEMENTS D. in the CLEARWATER FABRICATION CLEARWATER FABRICATION Liability **Coverage Element** is amended to include the following:

"The failure of any **Insured** to cooperate with the **Insurer** shall not affect coverage for any other **Insured**."

18. Section VI. DEFENSE COSTS, DEFENSE COUNSEL, SETTLEMENTS & JUDGMENTS F. in the Directors VANTAGE FABRICATION Liability **Coverage Element** is amended to include:

Tallgrass shall provide indemnification for **Loss**, and advance **Defense Costs**, on behalf of any **Individual Insured** to the fullest extent permitted or required by law. If such indemnification or advancement is permitted or required by law and all such **Companies**:

- (1) refuse in writing to indemnify or advance **Loss** within the Retention; or
- (2) fail to indemnify or advance **Loss** within the Retention within 60 days after any written request of an **Individual Insured** for such indemnification or advancement, other than because of Financial Insolvency, then the Insurer shall indemnify or advance such amounts under Insuring Agreement A. In such case, such **Companies** shall reimburse the Insurer for such amounts within the applicable Insuring Agreement B Retention that would have applied if indemnification or advancement had been made. Such amounts shall become immediately due and payable as a direct obligation of such **Companies** to the Insurer. The refusal or failure of the **Company** to perform any of its obligations to indemnify **Loss** or to advance **Defense Costs** shall not impair the rights of any **Individual Insured** under this Policy. No advancement of **Loss** by the Insurer shall relieve the **Company** of any duty it may have to provide advancement or indemnification to any **Individual Insured**.

19. Section X ORDER OF PAYMENTS in the CLEARWATER FABRICATION Liability **Coverage Element** is amended to read:

In the event of **Loss** arising from any **Claim** for which payment is due under the provisions of this **Coverage Element** but which **Loss**, in the aggregate, exceeds the remaining available Limits of Liability applicable to this **Coverage Element**, (including by virtue of the depletion of the Policy Aggregate Limit of Liability), then the **Insurer** shall:

- A. first pay such **Loss** for which coverage is provided under Coverage A of this **Coverage Element** for **Wrongful Acts** occurring prior to the **Company** becoming a Debtor in possession;
- B. then pay such **Loss** for which coverage is provided under Coverage A of this **Coverage Element** for **Wrongful Acts** occurring subsequent to the **Company** becoming a Debtor in possession;
- C. then pay such **Loss** for which coverage is provided under Coverage B of this **Coverage Element**; and
- D. then pay such other **Loss** for which coverage is provided under this policy.

Upon the written request of the **Named Insured**, the **Insurer** shall either pay or withhold payment for **Loss** otherwise payable under Coverages B, C, D or E. In the event that the **Insurer** withholds payment as requested by the **Named Insured**, then the **Insurer** shall at any time in the future, at the request of the **Named Insured**, release such **Loss** payment to a **Company**, or make such **Loss** payment directly to the **Individual Insured** in the event of any **Claim** under Coverage A of this **Coverage Element**. The **Insurer's** liability with respect to any payments of **Loss** withheld shall not be increased, and shall not include any interest, as a result of such withholding.

The **Financial Insolvency** of any **Company** or any **Individual Insured** shall not relieve the **Insurer** of any of its obligations to prioritize payment of covered **Loss** under this **Coverage Element** pursuant to this Section X.

**ENDORSEMENT NUMBER**  
**NAMED INSURED**  
**POLICY NUMBER**  
**EFFECTIVE DATE**

7  
Ridgeway Mechanical  
EUW8895725 51  
June 23, 2026

This endorsement modifies only the selected COVERAGE ELEMENTS(s) as indicated by an "X" below, and if applicable, the GENERAL TERMS AND CONDITIONS as they apply to the COVERAGE ELEMENT(s) indicated by an "X" below

|                                     |                                                 |                  |
|-------------------------------------|-------------------------------------------------|------------------|
| <input type="checkbox"/>            | IRONVALE AUTOMOTIVE SERVICES                    | COVERAGE ELEMENT |
| <input checked="" type="checkbox"/> | MERIDIAN INDUSTRIES                             | COVERAGE ELEMENT |
| <input type="checkbox"/>            | EMPLOYMENT PRACTICES LIABILITY COVERAGE ELEMENT |                  |
| <input type="checkbox"/>            | FIDUCIARY COVERAGE ELEMENT                      |                  |

## AMENDED EXTENDED REPORTING PERIOD – MULTIPLE OPTIONS

In consideration of the premium charged, it is understood and agreed that Item 5. EXTENDED REPORTING PERIOD of the General Declarations is deleted in its entirety and replaced with the following:

|                               |          |                            |
|-------------------------------|----------|----------------------------|
| 5. EXTENDED REPORTING PERIOD: | Period:  | 1 YR                       |
|                               | Premium: | 100% of the annual premium |
|                               |          |                            |
|                               | Period:  | 2 YR                       |
|                               | Premium: | 125% of the annual premium |
|                               |          |                            |
|                               | Period:  | 3 YR                       |
|                               | Premium: | 150% of the annual premium |

**ENDORSEMENT NUMBER**  
**NAMED INSURED**  
**POLICY NUMBER**  
**EFFECTIVE DATE**

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Ridgeway Mechanical  
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June 23, 2026

This endorsement modifies only the selected COVERAGE ELEMENTS(s) as indicated by an "X" below, and if applicable, the GENERAL TERMS AND CONDITIONS as they apply to the COVERAGE ELEMENT(s) indicated by an "X" below

|                                     |                                                 |                  |
|-------------------------------------|-------------------------------------------------|------------------|
| <input type="checkbox"/>            | IRONVALE AUTOMOTIVE SERVICES                    | COVERAGE ELEMENT |
| <input checked="" type="checkbox"/> | MERIDIAN INDUSTRIES                             | COVERAGE ELEMENT |
| <input type="checkbox"/>            | EMPLOYMENT PRACTICES LIABILITY COVERAGE ELEMENT |                  |
| <input type="checkbox"/>            | FIDUCIARY COVERAGE ELEMENT                      |                  |

## AMENDED REPORTING AND NOTICE (TOP EXECUTIVES)

It is agreed that, Section VI. Reporting And Notice A. is deleted in its entirety and replaced with the following:

A. The **Insured** shall, as a condition precedent to the obligations of the **Insurer** under this policy, give notice to the **Insurer** by mail or electronically to the address set forth in Item 4(b) of the General Declarations of:

- (i) any **Claim** made against an **Insured**,
- (ii) any matter which could involve the payment of **Adverse Media Event Loss** under the IRONVALE AUTOMOTIVE SERVICES Liability **Coverage Element** or MERIDIAN INDUSTRIES **Coverage Element**, if purchased;
- (iii) any matter which could involve the payment of **Voluntary Compliance Loss** under the **Fiduciary Liability Coverage Element**, if purchased; or
- (iv) any **Derivative Demand** Investigation under the IRONVALE AUTOMOTIVE SERVICES Liability **Coverage Element** or MERIDIAN INDUSTRIES **Coverage Element**, if purchased,

as soon as practicable upon knowledge by the CEO/CFO/COO, but in no event later than 90 days after the expiration date shown in Item 2 of the General Declarations or its earlier cancellation or prior to the end of the Extended Reporting Period, if applicable,

Any subsequent **Claim** which is made against the **Insureds** and reported to the **Insurer** alleging, arising out of, based upon or attributable to the facts alleged in a prior **Claim** for which notice already has been given, or which alleges any **Wrongful Act** which is the same as or is a **Related Wrongful Act** to an alleged prior **Claim** for which notice already has been given, shall be considered made at the time notice of the prior **Claim** originally was given.

**ENDORSEMENT NUMBER**  
**NAMED INSURED**  
**POLICY NUMBER**  
**EFFECTIVE DATE**

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Ridgeway Mechanical  
EUW8895725 51  
June 23, 2026

This endorsement modifies only the selected COVERAGE ELEMENTS(s) as indicated by an "X" below, and if applicable, the GENERAL TERMS AND CONDITIONS as they apply to the COVERAGE ELEMENT(s) indicated by an "X" below

|                                                                                                            |                            |
|------------------------------------------------------------------------------------------------------------|----------------------------|
| <input type="checkbox"/> IRONVALE AUTOMOTIVE SERVICES                                                      | LIABILITY COVERAGE ELEMENT |
| <input checked="" type="checkbox"/> MERIDIAN INDUSTRIES                                                    | LIABILITY COVERAGE ELEMENT |
| <input type="checkbox"/> EMPLOYMENT PRACTICES LIABILITY COVERAGE ELEMENT                                   |                            |
| <input type="checkbox"/> FIDUCIARY LIABILITY COVERAGE ELEMENT                                              |                            |
| <input type="checkbox"/> NOT FOR PROFIT DIRECTORS AND OFFICERS AND ORGANIZATION LIABILITY COVERAGE ELEMENT |                            |

## AMEND CANCELLATION NOTICE – PRO RATA

### VII. CANCELLATION

This policy or any individual **Coverage Element** may be canceled by the **Named Insured** at any time by mailing prior written notice to the **Insurer** stating which **Coverage Elements** are to be canceled or that the entire policy is to be canceled and when thereafter such cancellation shall be effective. The mailing of such notice shall be sufficient notice and the effective date of cancellation shall be the date the **Insurer** received such notice or any later date specified in the notice, and such effective date shall become the end of the **Policy Period** either for the entire policy or for that respective **Coverage Element** whichever is cancelled.

This policy may be canceled by or on the behalf of the **Insurer** only in the event of non-payment of premium by the **Named Insured**. In the event of non-payment of premium by the **Named Insured**, the **Insurer** may cancel this policy by delivering to the **Named Insured** or by mailing to the **Named Insured**, by registered, certified or other first class mail, at the **Named Insured's** address as stated in Item 1 of the General Declarations, written notice stating when, not less than 10 days thereafter, the cancellation shall be effective. The mailing of such notice as aforesaid shall be sufficient proof of notice. The **Policy Period** terminates at the date and hour specified in such notice.

If the policy or any **Coverage Element** shall be canceled by the **Named Insured**, the **Insurer** shall retain the pro rata proportion of the applicable premium herein.

If the Policy is canceled by the **Insurer**, the **Insurer** shall retain the pro rata proportion of the applicable premium herein.

Payment or tender of any unearned premium by the **Insurer** shall not be a condition precedent to the effectiveness of cancellation, but such payment shall be made as soon as practicable.

**ENDORSEMENT NUMBER**  
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**POLICY NUMBER**  
**EFFECTIVE DATE**

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This endorsement modifies only the selected COVERAGE ELEMENTS(s) as indicated by an "X" below, and if applicable, the GENERAL TERMS AND CONDITIONS as they apply to the COVERAGE ELEMENT(s) indicated by an "X" below

|                                                                                                            |                            |
|------------------------------------------------------------------------------------------------------------|----------------------------|
| <input type="checkbox"/> IRONVALE AUTOMOTIVE SERVICES                                                      | LIABILITY COVERAGE ELEMENT |
| <input checked="" type="checkbox"/> MERIDIAN INDUSTRIES                                                    | LIABILITY COVERAGE ELEMENT |
| <input type="checkbox"/> EMPLOYMENT PRACTICES LIABILITY COVERAGE ELEMENT                                   |                            |
| <input type="checkbox"/> FIDUCIARY LIABILITY COVERAGE ELEMENT                                              |                            |
| <input type="checkbox"/> NOT FOR PROFIT DIRECTORS AND OFFICERS AND ORGANIZATION LIABILITY COVERAGE ELEMENT |                            |

## AMEND EXTENDED REPORTING PERIOD REQUIREMENT

In consideration of the premium charged it is agreed that paragraph two of VIII. Extended Reporting Period in the General Terms and Conditions is amended to read:

Upon expiration or cancellation of this policy, other than for non-payment of premium, the **Insureds** shall have the right, upon payment of the additional premium indicated in Item 5. of the General Declarations not more than 60 days after the earlier of the expiration date or effective date of cancellation, to an extension of the Notice of Claim provision described in VI. Reporting and Notice of these General Terms and Conditions, for the length of time shown in Item 5. of the General Declarations, commencing on the earlier of the expiration date or effective date of cancellation. Such extension of time to report a **Claim** (herein referred to as the Extended Reporting Period wherever it appears in this policy) shall apply only to **Wrongful Acts** committed, attempted, or allegedly committed or attempted, prior to the earlier of the expiration date or effective date of cancellation, and which are not otherwise excluded by any terms and conditions of this policy. Any **Claim** first made during the Extended Reporting Period shall be deemed to have been made during the **Policy Period**.

As a condition precedent to the right to purchase the Extended Reporting Period, the total premium for this policy must have been paid and the premium for the Extended Reporting Period must be paid in full with written notice of the **Insured's** election to purchase the Extended Reporting Period not more than 60 days after the earlier of the expiration date or effective date of cancellation. The **Insured's** right to purchase the Extended Reporting Period shall otherwise lapse.

If the Extended Reporting Period is purchased, the additional premium shall be deemed fully earned, and the Extended Reporting Period cannot be canceled by any **Insured** or the **Insurer**.

If any premium is owed for the policy, any premium received from the **Named Insured** shall first be applied to the premium owing for the policy with the remainder applied to the premium for the Extended Reporting Period. The Extended Reporting Period shall not take effect unless the

outstanding premium for the policy is paid in full and the premium for the Extended Reporting Period is paid when due.

The purchase of the Extended Reporting Period shall not in any way increase or reinstate any limits of liability.

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**NAMED INSURED**  
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This endorsement modifies only the selected **COVERAGE ELEMENT(s)** as indicated by an "X" below, and if applicable, the GENERAL TERMS AND CONDITIONS as they apply to the **COVERAGE ELEMENT(s)** indicated by an "X" below.

- |                                     |                                                                                   |                            |
|-------------------------------------|-----------------------------------------------------------------------------------|----------------------------|
| <input type="checkbox"/>            | IRONVALE AUTOMOTIVE SERVICES                                                      | LIABILITY COVERAGE ELEMENT |
| <input checked="" type="checkbox"/> | MERIDIAN INDUSTRIES                                                               | LIABILITY COVERAGE ELEMENT |
| <input type="checkbox"/>            | EMPLOYMENT PRACTICES LIABILITY COVERAGE ELEMENT                                   |                            |
| <input type="checkbox"/>            | FIDUCIARY LIABILITY COVERAGE ELEMENT                                              |                            |
| <input type="checkbox"/>            | NOT FOR PROFIT DIRECTORS AND OFFICERS AND ORGANIZATION LIABILITY COVERAGE ELEMENT |                            |

## AMENDED DEFINITION OF SUBSIDIARY

Section II. Definitions. **Subsidiary** is amended to include:

CLEARWATER ; TALLGRASS HOLDINGS ; BLUE FORK MOTORWORKS ; FAIRMOUNT MOTORWORKS ; Member  
TALLGRASS

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This endorsement modifies only the selected **COVERAGE ELEMENT(s)** as indicated by an "X" below, and if applicable, the GENERAL TERMS AND CONDITIONS as they apply to the **COVERAGE ELEMENT(s)** indicated by an "X" below.

- |                                     |                                                                                   |                            |
|-------------------------------------|-----------------------------------------------------------------------------------|----------------------------|
| <input type="checkbox"/>            | IRONVALE AUTOMOTIVE SERVICES                                                      | LIABILITY COVERAGE ELEMENT |
| <input checked="" type="checkbox"/> | MERIDIAN INDUSTRIES                                                               | LIABILITY COVERAGE ELEMENT |
| <input type="checkbox"/>            | EMPLOYMENT PRACTICES LIABILITY COVERAGE ELEMENT                                   |                            |
| <input type="checkbox"/>            | FIDUCIARY LIABILITY COVERAGE ELEMENT                                              |                            |
| <input type="checkbox"/>            | NOT FOR PROFIT DIRECTORS AND OFFICERS AND ORGANIZATION LIABILITY COVERAGE ELEMENT |                            |

## RELIANCE ENDORSEMENT

Section II. Definitions A. **Application** is amended to include:

Beazley Remedy New Business Management Liability Application signed and dated March 16, 2026

which shall be deemed attached to and made part of this policy.